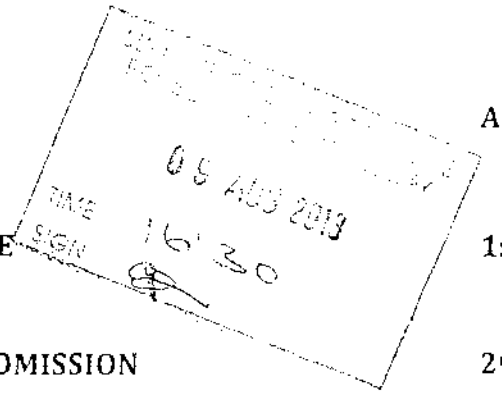
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IN THE CONSTITUTIONAL COURT OF ZIMBABWE
HELD AT HARARE

Case No. CCZ 21/13

In the matter between

MORGAN TSVANGIRAI — Applicant



And

ROBERT GABRIEL MUGABE — 1st Respondent

And

ZIMBABWE ELECTORAL COMISSION — 2nd Respondent

And

RITA MAKARAU N.O — 3rd Respondent

And

CHIEF ELECTIONS OFFICER — 4th Respondent

ELECTION PETITION IN TERMS OF SECTION 93 OF THE CONSTITUTION OF ZIMBABWE

Filed by

ATHERSTONE AND COOK
Applicant's Legal Practitioners
7th Floor, Mercury House
George Silundika Avenue
HARARE

IN THE CONSTITUTIONAL COURT OF ZIMBABWE CASE NO CCZ 71/13
HELD AT HARARE

In the matter between:

MORGAN RICHARD TSVANGIRAI	APPLICANT
And	
ROBERT GABRIEL MUGABE	1st RESPONDENT
And	
THE ZIMBABWE ELECTORAL COMMISSION (ZEC)	2nd RESPONDENT
RITA MAKARAU N.O	3rd RESPONDENT
And	
THE CHIEF ELECTIONS OFFICER	4th RESPONDENT

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DATED AT HARARE THIS 15TH DAY OF AUGUST 2013

ATHERSTONE & COOK
7th Floor Mercury House
24 G. Silundika Avenue
HARARE (CM ak Z58)

TO: THE REGISTRAR OF THE CONSTITUTIONAL COURT
Constitutional Court of Zimbabwe
Cnr. 3rd Street/ K. Nkrumah Avenue
HARARE

AND TO: HUSSEIN RANCHHOD & CO.
1st Respondent's Legal Practitioners
119 J. Chinamano Avenue
HARARE (2 mh)

AND TO: NYIKA, KANENGONI & PARTNERS
2nd - 4th Respondents' Legal Practitioners
155 Samora Machel Avenue
HARARE

AND TO: MUTAMANGIRA & ASSOCIATES
Counsel for the Attorney General
2nd Floor, Travel Plaza
29 Mazoe Street/ J. Chinamano Avenue
HARARE

IN THE CONSTITUTIONAL COURT OF ZIMBABWE **Case No.....2...1/13**
HELD AT HARARE

In the matter between

MORGAN TSVANGIRAI **Applicant**

And
ROBERT GABRIEL MUGABE **1st Respondent**

And
ZIMBABWE ELECTORAL COMISSION **2nd Respondent**

And
RITA MAKARAU N.O **3rd Respondent**

And
CHIEF ELECTIONS OFFICER **4th Respondent**

ELECTION PETITION IN TERMS OF SECTION 93 OF THE CONSTITUTION OF ZIMBABWE

09/08/2013
18:19 hours
LOVEMORE CHIPUNZA SECRETARY

Filed by

ATHERSTONE AND COOK
Applicant's Legal Practitioners
7th Floor, Mercury House
George Silundika Avenue
HARARE

IN THE CONSTITUTIONAL COURT OF ZIMBABWE
HELD AT HARARE

Case No...../13

In the matter between

MORGAN TSVANGIRAI — Applicant

And
ROBERT GABRIEL MUGABE — 1st Respondent

And
ZIMBABWE ELECTORAL COMISSION — 2nd Respondent

And
RITA MAKARAU N.O — 3rd Respondent

And
CHIEF ELECTIONS OFFICER — 4th Respondent

ELECTION PETITION IN TERMS OF SECTION 93 OF THE CONSTITUTION OF ZIMBABWE

NOTICE OF ELECTION PETITION

BE PLEASED TO TAKE NOTICE THAT an Application is hereby made to the Constitutional Court for an order in terms of the order/draft order annexed to this application on the grounds that:-

a) The Applicant was a candidate in the presidential election held on the 31st of July 2013.

b) 1st Respondent was declared the winner of that election on Saturday 03 August 2013.

c) The election so conducted produced an undue return. It was marred by corrupt and illegal practises and other electoral malpractices and is in violation of the Constitution.

The accompanying affidavit/s and document/s are tendered in support of the application.

THUS DONE AND DATED AT HARARE THIS 9th DAY OF AUGUST 2013

ATHERTSONE & COOK
7TH Floor Mercury House
24 G. Silundika Avenue
Harare (IC/ak)

TO: **THE REGISTRAR OF THE ELECTORAL COURT**
Electoral Court of Zimbabwe
HARARE

AND TO: **ROBERT GABRIEL MUGABE**
1st Respondent
Munhumutapa Building
Harare

AND TO: **THE ZIMBABWE ELECTORAL COMISSION**
2nd Respondent
Number 1 Nelson Mandela Avenue
Corner Kaguvi & Jason Moyo
Harare

AND TO: **RITA MAKARAU N.O**
3RD Respondent
Number 1 Nelson Mandela Avenue
Corner Kaguvi & Jason Moyo
Harare

AND TO: **CHIEF ELECTIONS OFFICER**
4th Respondent
Number 1 Nelson Mandela Avenue
Corner Kaguvi & Jason Moyo
Harare

IN THE CONSTITUTIONAL COURT OF ZIMBABWE CASE NO CCZ 71/13
HELD AT HARARE

In the matter between:

MORGAN RICHARD TSVANGIRAI	APPLICANT
And	
ROBERT GABRIEL MUGABE	1st RESPONDENT
And	
THE ZIMBABWE ELECTORAL COMMISSION (ZEC)	2nd RESPONDENT
RITA MAKARAU N.O	3rd RESPONDENT
And	
THE CHIEF ELECTIONS OFFICER	4th RESPONDENT

ADDRESS OF SERVICE

TAKE NOTICE that the Petitioner's address of service

c/o: ATHERSTONE & COOK
Legal Practitioners
7th Floor, Mercury House
24 George Silundika Avenue
P.O.Box 2625
HARARE

DATED AT HARARE THIS 15TH DAY OF AUGUST 2013

ATHERSTONE & COOK
7TH Floor Mercury House
24 G. Silundika Avenue
HARARE (CM/ak/Z58)

TO: THE REGISTRAR OF THE CONSTITUTIONAL COURT
Constitutional Court of Zimbabwe
Cnr. 3rd Street/ K. Nkrumah Avenue
HARARE

AND TO: HUSSEIN RANCHHOD & CO.
1st Respondent's Legal Practitioners
119 J. Chinamano Avenue
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AND TO: NYIKA, KANENGONI & PARTNE RS
2nd - 4th Respondents' Legal Practitioners
155 Samora Machel Avenue
HARARE

AND TO: MUTAMANGIRA & ASSOCIATES
Counsel for the Attorney General
2nd Floor, Travel Plaza
29 Mazoe Street/ J. Chinamano Avenue
HARARE

IN THE CONSTITUTIONAL COURT OF ZIMBABWE CASE NO CCZ
HELD AT HARARE

In the matter between:

MORGAN RICHARD TSVANGIRAYI **APPLICANT**

And

ROBERT GABRIEL MUGABE **1ST RESPONDENT**

And

THE ZIMBABWE ELECTORAL COMMISSION (ZEC) **2ND RESPONDENT**

And

THE CHAIRPERSON OF THE ZIMBABWE ELECTORAL COMMISSION **3rd RESPONDENT**

And

THE CHIEF ELECTIONS OFFICER **4TH RESPONDENT**

AFFIDAVIT OF MORGAN RICHARD TSVANGIRAI

I, the undersigned **Morgan Richard Tsvangirai** do hereby make oath and swear that;

1. I am the Applicant in this matter and I am the President of the Political party called the Movement for Democratic Change (MDC-T) at the Presidential election held on the 31st of July 2013, I stood as a candidate for the office of President of Zimbabwe as it is now established in terms of Section 89 of the Constitution of Zimbabwe on behalf of the Movement for Democratic Change.

2. The First Respondent is Robert Gabriel Mugabe who was declared the winner of the Presidential election held on the 31st of July 2013 by the Second

Respondent on the 3rd of August 2013. The First Respondent is also the President of the Political party call the Zimbabwe African Union (Patriotic Front) (ZANU (PF).

3. The Second Respondent is the Zimbabwe Electoral Commission established in terms of Section 238 of the Constitution of Zimbabwe as read with Section 4A of the Electoral Act Chapter 2.13.

4. The Zimbabwe Electoral Commission is charged with the responsibilities in terms of the Constitution and the Electoral Act **inter alia** to prepare for, conduct and supervise elections for President, Parliament, Chiefs, Provincial and Metropolitan Councils and other bodies. The Zimbabwe Electoral Commission is tasked to ensure the credibility of the elections and that those elections are conducted efficiently, freely and transparently in accordance with the Law.

5. The Third Respondent is the Chief Elections Officer appointed in terms of the Electoral Act. The Chief Elections Officer is cited because in the event that this application is granted, he is obliged in terms of Section 111(2) (b) to publish a notice in the Gazette stating the effect of the order of this Honourable Court.

ELECTION PETITION

6. This Election Petition is brought in terms of Section 93 of the Constitution of Zimbabwe. On the basis of the evidence and submission presented before this Honourable Court through this petition, and evidence which will be led at the trial of the petition, I challenge the validity of this election it is my respectful

Respondent on the 3rd of August 2013. The First Respondent is also the President of the Political party call the Zimbabwe African Union (Patriotic Front) (ZANU (PF).

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ELECTION PETITION

6. This Election Petition is brought in terms of Section 93 of the Constitution of Zimbabwe. On the basis of the evidence and submission presented before this Honourable Court through this petition, and evidence which will be led at the trial of the petition, I challenge the validity of this election it is my respectful

contention that the election held on the 31st of July 2013 is void and or liable to be set aside.

7. Through this election petition and evidence which will be led at the trial, I respectfully submit that the First Respondent was not duly elected owing to the numerous corrupt and illegal practices and other electoral malpractices and irregularities attributable to First Respondent and/or First Respondent's campaign teams. Separately, I seek also to have the election set aside on the basis that the Second Respondent failed to discharge its constitutional obligation to manage and supervise the conduct of a credible, efficient, transparent, free and fair elections as it is obliged to under Chapter 7 of the Constitution of Zimbabwe and the Electoral Act (Cap 2:13). Third, I also seek to have the election set aside on the basis that it was held in breach of the Constitution.

8. Despite the fact that the election had not been conducted in accordance with the Constitution and the Electoral Law, Fourth Respondent announced on 3 August 2013 that the First Respondent had been duly elected as President of Zimbabwe.On account of the irregularities referred to above, the Presidential election result announced by the Second Respondent on the 3rd of August 2013 does not represent the will of the Zimbabwean voting public. I believe that in hearing this matter and determining whether or not the election was valid this Honourable Court must have regard to fundamental rights which every Zimbabwean is entitled to, including the following

67 Political rights

(1) Every Zimbabwean citizen has the right—

(a) to free, fair and regular elections for any elective public office established in terms of this Constitution or any other law; and

(b) to make political choices freely.

(2) Subject to this Constitution, every Zimbabwean citizen has the right—

(a) to form, to join and to participate in the activities of a political party or organisation of their choice;

(b) to campaign freely and peacefully for a political party or cause;

(c) to participate in peaceful political activity; and

(d) to participate, individually or collectively, in gatherings or groups or in any other manner, in peaceful activities to influence, challenge or support the policies of the Government or any political or whatever cause.

(3) Subject to this Constitution, every Zimbabwean citizen who is of or over eighteen years of age has the right—

(a) to vote in all elections and referendums to which this Constitution or any other law applies, and to do so in secret; and

(b) to stand for election for public office and, if elected, to hold such office

9. I also believe that while this Court does not yet have it own specific rules for petitions, because of the many fundamental rights involved, its procedure in hearing this case should not only be fair but should ensure that formalities relating to the proceedings are kept to a minimum; and that the court, while observing the rules of natural justice, is not unreasonably restricted by procedural technicalities in accordance with section 69 and section 85(3) of the Constitution.

BACKGROUND

10. In order to give context to this application, I respectfully consider it necessary to provide a brief background. The background is that since 2000, our country has been unable to produce a Presidential (and other) result which is not contestable on account of irregularities. In particular, and in the context of Presidential elections it is important fact that the harmonised elections in 2008 and the subsequent "run off" in June 2008 did not produce an electoral result which was credible. It is common cause that and public knowledge that having won the first in March 2008, I, and the Movement for Democratic Change (MDC-T) then withdrew from the ostensible presidential election runoff in June 2008 because of what the State sponsored and other violence, intimidation, media bias and hate speech and numerous other electoral malpractices. It is common cause that the election in June 2008 was not free, fair, transparent and credible. Having withdrawn from the June 2008 runoff the First Respondent Robert Gabriel Mugabe contested the supposed runoff event as a sole candidate. The results of the 2008 election were rejected not only by my party the Movement for Democratic Change and I, but also by the generality of Zimbabweans and the African and international community.

11. The First Respondent accepted that the election in 2008 was not free, fair and credible. He did not and could not form an acceptable Government under those circumstances. As a result, and within two weeks of being sworn in, the Respondent, I and other parties entered into a Memorandum of Understanding through the intervention/mediation of the Southern African Development Community (SADC). The Memorandum of Understanding was consummated under an agreement mediated by the Southern African Development Community which was signed on the 15[TH] of September 2008. The September

agreement commonly referred to as inter party Global Political Agreement or power sharing agreement (both "the GPA") and is part of the Constitution of Zimbabwe. I respectfully incorporate the two agreements as a part of this petition.

12. I presented the background above because it is directly important and relevant to this matter. I respectfully testify that the purpose of the Global Political Agreement was to ensure and guarantee a process towards elections which would ensure free, fair and credible elections. Its purpose was to remove all causes of the failed election of 2008 and to provide conditions to achieve a lasting solution to the political challenges in this country. For this reason, the agreement specifically deliberately addressed processes for the elimination of violence and intimidation whether State sponsored, direct or indirect, media bias and hate speech and other circumstances militating against free, fair, transparent and credible elections. Article 6 of the Global Political Agreement made provision for processes towards a new constitution to guarantee all rights including the right to vote in a free, fair and credible election and other political rights. Accordingly the new constitution encompasses a superior set of democratic values and standards not only in relation to election laws but also laws which have a direct bearing on free, fair and credible elections.

13. Although the inclusive government born out of the Global Political Agreement made much progress, regrettably there was also disagreement on important issues. I have been involved in or have myself instituted proceedings during the life of the inclusive Government before these Honourable Courts which confirm the fact of such disagreements. There are number of cases in which First Respondent and I have differed in important issues during the life of the

inclusive Government. I incorporate herein those cases and the affidavits therein in order to demonstrate that the 2nd Respondent has not been faithful to the latter, spirit and purpose of the Global Political Agreement.

14. Unfortunately, when election dates were fixed following the judgment of this Honourable Court in Jealousy Mawarire vs Robert Gabriel Mugabe and others (in which First Respondent advised the Court that an election could be properly held by the 31st July 2013), further differences arose as between the First Respondent and I on various matters.

15. Importantly, when the election was held on the 31st of July 2013, steps necessary to conduct a free, fair and credible poll had not been fulfilled. I submit that the country went to elections on the 31st of July 2013 before conditions were right for a free, fair and credible election.

16. As a result, cause has arisen for this Election Petition.

GROUNDS FOR THE PETITION

17. I now turn to the specific grounds upon which this petition is based, evidence of which will be fully adduced at the trial of this petition. I should mention that there have been formidable obstacles faced in the preparation of this petition on account of lack of cooperation by the Second Respondent. Basic information that is held by the Second Respondent and is required by law to be provided to candidates has not been made available even after requests. As a result, I have had to file separate urgent applications to these Honourable Courts in order to obtain this information which will be necessary at the trial of this petition.

18. My grounds for this petition are outlined below but attached hereto as **Annexure "A"** is a full dossier which I incorporate hereto as if specifically traversed.

19. ELECTIONS HELD IN BREACH OF CONSTITUTION

19.1 On 13th June 2013, the First Respondent wrote a letter to me advising that he was proclaiming dates for elections which he did on the same day without consultation. He also purported to amend the Electoral Act using his powers under the Presidential Powers (Temporary Measures) Act.

19.2 I am advised by my legal representatives, which advice I believe, that the purported amendment of the Electoral Act using the Presidential Powers (Temporary Measures) Act was *ultra vires* the Constitution. The most important of these reasons is that s. 157 of the Constitution prescribes that electoral amendments can only be done by an Act of Parliament, which is primary legislation and yet under the Presidential Powers Act, the President can only issue regulations, which are secondary legislation. I am advised that an Act of Parliament is clearly defined in the new Constitution as a Bill that has been passed by both Houses of Parliament and signed by the President. Amendments through the Presidential Powers Act have not gone through Parliament and are not an "Act of Parliament".

19.3 I am further advised that in terms of the new Constitution, only Parliament has the power to make primary legislation and this power cannot be delegated to anyone, including the President. Using the Presidential Powers Act, the Second

Respondent sought to make primary legislation under the guise of regulations. I am advised and believe that to the extent that the Presidential Powers (Temporary Measures) Act effectively gives the President power to make primary legislation contrary to the provisions of the new Constitution which ensure that primary law-making powers are the exclusive domain of Parliament, it is unconstitutional. In any event, resorting to the use of the Presidential Powers (Temporary Measures) Act when Parliament was still in existence was not justified.

19.4 The net effect of the conduct of the First Respondent in the use of the presidential powers was that the purported amendment of the Electoral Act using regulations was ultra vires s. 157 of the Constitution and therefore null and void. The Electoral Act was therefore never properly amended as mandatorily required under Schedule 6 of the Constitution.

20. DISENFRANCHISEMENT THROUGH RESTRICTIVE VOTER REGISTRATION

20.1 I am concerned that thousands of persons who were eligible to register as voters were unable to do so due to Second Respondent's inefficiencies and the limited time that was provided for the exercise. The new Constitution made provision in Schedule Six for a mandatory intensive voter registration and voters' roll inspection exercise for at least 30 days. This officially began on 10th June 2013 and ended on 9th July 2013.

20.2 However, even on the final day of registration, countless people in queues were unable to register, with the Second Respondent closing the exercise. Evidence on the numbers will be led upon the provision of the electronic voters roll. There was an upsurge in demand for registration by first-time voters and also because persons previously categorised as aliens had recently had their citizenship rights

restored by the new Constitution. Second Respondent failed to meet this demand, leaving many people especially in urban areas disenfranchised.

20.3 I am advised and believe that ZEC's handling of the voter registration exercise, particularly the closure of registration when countless people were in queues to register was in violation of the new Constitution which in s. 155 requires the State to ensure that every citizen who is eligible to vote is registered and that every citizen who is eligible to vote has an opportunity to cast a vote. It is a right that is constitutionally guaranteed under the Constitution (s. 67 and s. 68).

21. REFUSAL TO AVAIL THE VOTERS' ROLL TO CANDIDATES

21.1 ZEC failed and/or refused to avail an electronic copy of the voters' roll in searchable and analysable form. Despite several pleas for the voters' roll, a hard copy was only delivered late on polling day, just a couple of hours before the polls closed. I am advised and believe that failure to avail the voters' roll is not only a serious violation of the Electoral Act but it is so fundamental a breach that it undermines the credibility of the entire election. The Electoral Act requires ZEC to make available free of charge to political parties and candidates electronic copies of the voters rolls. Printed copies can be available to any person upon payment of the prescribed fee. ZEC has failed to comply with the law. It does not make any sense that ZEC was able to print copies of the voters' roll and yet alleged that they could not provide the electronic copy because the logical thing is that one can only print from an electronic or soft copy. Hence the averment that not only did ZEC fail to provide the electronic copy of the voters' roll but they have refused to do so, notwithstanding the existence of a court order.

21.2 I am further advised and believe that failure to make the voters' roll available is also a violation of the Constitution which requires that the State must ensure that all political parties and candidates in an election have reasonable access to all material and information necessary for them to participate effectively. Further, in terms of regional best practice as reflected in the SADC Principles and Guidelines on Democratic Elections, the voters' roll must be accessible to political parties and members of the public.

21.3 My major concern is that the absence of the voters' roll was a serious handicap because the voters' roll is the most critical document used to determine whether or not a person is eligible to vote. This is compounded by the fact that with the late delivery of the voters' roll, there was virtually no time to properly inspect and verify its authenticity.

21.4 The refusal to avail the voters' roll for inspection following the end of the voter registration period on 9th July 2013 was also in breach of Schedule 6 of the Constitution which provided for a period of mandatory inspection of the voters' roll. Although the Second Respondent stated that registration and inspection could be done concurrently, it defies logic because one can only properly inspect whether or not his or her name is on the voters' roll after and not during the preparation of the register. In fact, the failure to provide for a period of inspection of the voters' roll is directly connected to the major problems that were faced on polling day when thousands of voters were turned away on account of their names appearing in different wards. It is also directly connected to the rampant abuse of the voter registration slips on polling day purportedly on account of the fact that one's name did not appear on the voters' roll despite having registered. If there had been adequate time for inspection in compliance with the

Constitution, these problems affecting the credibility of the election could have been avoided at the very least, reduced.

21.5 Part of the information that we have requested from ZEC and is the subject of a separate court application is the number of persons who used voter registration slips on polling day. Once provided, evidence will be adduced at trial to demonstrate the scale of the irregularity.

22. DUPLICATION OF NAMES ON THE VOTERS ROLL

22.1 I am advised and believe that a review of the voters' roll has shown duplication of names on a large scale. I have studied and believe a report on an assessment of an earlier version of the voters' roll (provided on 19th June 2013) by a local research organisation which demonstrated that 870,000 names had been duplicated on the voters' roll. I provide at **Annexure "B"** a sample of the voters' roll as at 19th June 2013 a quick perusal of which demonstrates the nature of the irregularity of duplication of names. There are literally thousands of pages depicting this problem and evidence will be adduced at the trial of this petition.

22.2 The implication of the duplication is that the voters' roll was inflated and certainly not a true reflection of the number of persons that are registered to vote. This flaw meant that when ZEC printed an extra 2 million ballot papers, they were basing it on a grossly inflated and flawed voter register. The duplication of names and the extra ballot papers significantly raised the risk of multiple voting and unaccounted for ballots.

22.3 All in all, the huge scale of duplication of names puts into serious doubt the credibility of the voters' roll and the entire electoral process.

23. ABUSE OF THE SPECIAL VOTING SYSTEM

23.1 I am concerned that the special voting system was exposed to abuse in that it allowed room for service personnel to vote more than once during the election, thereby inflating voting figures. There was no credible way of ensuring that persons who had voted on the special voting days did not vote again on the main polling day.

23.2 There was no accountability on the number of persons eligible for special voting as the number of approved voters did not tally with number of personnel in the service of the police, at least according to Government payments records. The deliberate inflation of numbers gave room for inflated voting figures. In addition, the number of special voting envelopes containing special votes sent to the different wards did not match with the number of persons registered to vote in those wards. Further evidence on this will be adduced at the trial of this petition.

23.3 Further, ZEC has so far failed to account for the number of ballots used on the special voting days – how many were printed and distributed and how many were unused and what happened to them.

23.4 There are specific legal concerns over violations of the law on special voting which are:

i. The number of Special Voting ballot papers printed and distributed to the individual special voting polling stations were never made public, which the ZEC is required by law to do.

ii. The list of names approved for Special Voting should have been made available for public scrutiny by the ZEC, but was never done.

iii. The Chief Elections Officer must send the successful special voting applicant a written authorization allowing the person to vote during special voting. I am advised that only in a very few instances were such an authorization issued;

iv. According to Electoral Amendment Act 2013, special voters must show ZEC's special voter certificate. ZEC violated this legal requirement in its official special voting procedures, by allowing individuals to cast a ballot without this certificate, as long as their name was on the special voters lists;

v. ZEC has still not publically released the number of ballot papers printed and distributed to the special voting polling stations which the ZEC is required by law to do.

vi. In order to avoid double-voting by Special Voters, the Chief Elections Officer must ensure that the names of special voters have been stricken off the voters' lists before being sent to the Wards. As the voters lists were printed and distributed by the Registrar-General of Voters the CEO could not ensure that names were stricken of the lists.

vii. Both Special Voting and Postal Voting ballots were opened and counted at the polling station level, which is clear violation of the law which stipulates it should be done ZEC's ward centres.

viii. Special votes got mixed with ordinary votes BEFORE COUNTING in violation of Electoral Law; thus the impact of special votes on each result and nationwide could not be seen easily as required by the Electoral law - *sections 65(4)(b), 78, 81F(14), and 81G of the Act, section 10 (1) and Form V23A in the First Schedule of the Electoral Regulations, SI 21 of 2005 as amended by SI 87 of 2013*. This breach of the law was deliberately ordered by ZEC nationwide. ZEC issued

23.5 I make reference to the affidavit by Tongai Matutu attached at **Annexure "C"**. I incorporate herein the Court Application that I made challenging the validity of the Special Vote.

23.6 Also see the prescribed Form and the actual ward collation returns **Annexure D** which rendered every ward return invalid.

24. IRREGULARITIES OVER POSTAL BALLOTS

24.1 I am advised that the Chief Elections Officer released the postal ballots to the Ministry of Foreign Affairs for distribution to its embassy personnel and other voters eligible for postal ballot on the July 17th 2013, even though the deadline for receiving marked postal ballots were only a few hours away. It is therefore not plausible any postal vote were returned in accordance with the legal deadline. Still, however, postal ballots were accepted and used in this election.

25. INTIMIDATION/VIOLENCE

25.1 It is my testimony that the election on the 31st of July 2013 is rendered now void and or liable to be set aside on the basis that these purported outcomes were heavily influenced by intimidation and fear.

25.2 I am aware of the reports that the election was "peaceful" but wish to clarify with respect that violence is not just the fact of physical harm but also the fear of it. I have already given background which is not disputable that in 2008 the voting population of Zimbabwe was brutalised and traumatised. It is not disputable that a significant part of such contact was orchestrated by elements of the uniformed forces and that it is for this specific reason that provision were agreed and included in the Global Political Agreement and subsequently in the Constitution

to address the problem. It is also not disputable that by the time Zimbabwe went to the polls this issue had not been resolved.

25.3 The harmonized elections in 2013 went on without any of the assassinations and public beatings that we have generally endured since we first contested elections in 2000; and for that we are deeply grateful to all involved.

25.4 The fact that the 2013 elections appeared more peaceful than previous elections does not mean these were without fear. On the contrary, First Respondent had recognized the persistence of fear and pledged to take certain steps to dispel it before the elections; steps needing no time or money to perform; yet he never took them.

25.5 One pledge he made, to us, the Facilitator under the Global Political Agreement, SADC, and the African Union was that he and service chiefs would publicly acknowledge that the security services must be impartial and not take any political side.

25.6 I expect him to admit this pledge, as his Minister lodged a record of it with this Court in CC 35/13.

25.7 Now members of this Honourable Court must ask themselves:

i. Why would he make this pledge to SADC if it was not needed?

ii. Why did the Facilitator and other regional leaders all agree such public assurances were needed - if they were not? and

iii. Why, when no time or money was needed to honour his pledge, did First Respondent renege?

25.8 The pledge was needed as past conduct of the armed forces – in statements and sins of omission and commission which I can detail to the Court if need be – had caused fear. The pledge was broken so the fear continued. Thus the election may have appeared peaceful; but certainly it was not without fear.

25.9 It is a fact ZANU PF, the 1st Respondent's party, is implicated in this scandal as Vice President Joyce Mujuru was shown on national television before the elections openly calling for traditional leaders to assist persons under their jurisdiction to vote for ZANU PF. This is despite the clear provisions under Chapter 15 of the Constitution that prohibit traditional leaders from interfering in political affairs. Therefore, behind the façade of peacefulness, there was serious intimidation of voters, particularly in the rural areas.

26. VOTING UNDER DURESS – THE PROBLEM OF ASSISTED VOTERS

26.1 The essence of any democratic voting process is that every voter must exercise his free will by secret ballot. Any interference in the exercise of the right to vote in secret violates the fundamentals of the democratic process. There is evidence showing that thousands of voters were forced to plead illiteracy and therefore to have someone assist them to cast their ballots. This problem was particularly rife in the rural areas.

26.2 Reports from parliamentary candidates and election agents representing my party demonstrate that traditional leaders commandeered rural voters under their jurisdiction to vote at specific times and to declare illiteracy so that they would be "assisted" to vote. Further evidence on this will be adduced at the trial of this petition.

26.3 The extent of the problem involuntary "assisted voters" across the country would be easily evident from the number of persons who supposedly opted for assistance. I am advised that in one constituency alone, at least 10,500 voters out

of 17,000 who cast their ballots were assisted a figure that is incredible considering this is a country applauded for having some of the highest literacy rates in Africa.

26.4 In fact according to the 2nd Respondent reports 206 901 voters were "assisted" and we have since collected credible evidence that this phenomenon was due to massive intimidation by the 1st Respondents party supporters, agents and associates. Evidence will be led at the trial of this petition on the irregularities surrounding assisted voting.

26.5 From the affidavits it is clear that there was a sophisticated and well-orchestrated system of intimidation that led to perfectly literate individuals professing that they could not read and write. This system was designed to ensure that the voters would vote for the 1st Respondent. I contend that over 200 000 votes were attributed to the 1st Respondent in his final vote tally are a direct result of electoral fraud. On this basis alone the election should be nullified.

26.6 Information which my party is gathering, which will be adduced at the trial of this petition shows that the problem of forced assisted voters happened on an industrial scale in rural areas, particularly in the Mashonaland provinces, Manicaland and Masvingo. The purpose was to stop voters from exercising their free will and instead to outsource their choices to those who were specifically designated to "assist". ZANU PF is implicated in this scandal as Vice President Joyce Mujuru was shown on national television before the elections openly calling for traditional leaders to assist persons under their jurisdiction to vote for ZANU PF. Therefore, behind the façade of peacefulness, there was serious intimidation of voters, particularly in the rural areas.

26.7 The forced assistance of voters who are otherwise literate and able to vote by themselves was deliberately designed to emasculate voters' rights to vote by secret ballot, clearly a violation of the new Constitution and the SADC Guidelines. Evidence will be adduced at trial from witnesses who are otherwise literate but were directed and forced to declare illiteracy so that they could be assisted.

27. TURNING AWAY OF VOTERS AT POLLING STATIONS

27.1 I am further concerned that thousands of voters were turned away at polling stations resulting in disenfranchisement on an industrial scale and therefore affecting the credibility of the election. As already averred in regard to the voters' roll most voters were turned away from polling stations on the basis that their names were appearing in wards and constituencies other than their own. In this election a voter could only cast their ballot in their ward and once the name appeared in another ward, they had to either travel to that ward or not vote at all. As will be shown when evidence is adduced from witnesses at the trial of this petition, in some cases voters who believed they were registered in a Harare ward found their names in a ward in rural Matabeleland, too far for them to travel on polling day even if they wanted to do so. The migration of voters on the register to wards other than their own was done on an industrial scale, thereby denying thousands of persons their right to vote. Information gathered by ZESN, the largest network of local election observers, demonstrates that at least 750,000 voters were turned away at polling stations mainly in urban areas. This means that overall almost one million voters were denied their right to vote in this election. The disenfranchisement of voters on such a huge scale damages the credibility of the voting process and the credibility of the result.

27.2 I am advised and believe that this contravenes the SADC Guidelines which require equal access and opportunity to vote for all eligible persons and also section 155 of the new Constitution which requires that the State must take all measures to ensure that all persons who are eligible to vote have an opportunity to cast their votes. The majority of persons who were turned away had no recourse but to return home disenfranchised. Part of the data that ZEC has been asked to disclose, which by law they should provide, is the number of persons who were turned away at the various polling stations.

27.3 Evidence will be led at trial to demonstrate the irregularity.

28. RAMPANT MISUSE OF VOTER REGISTRATION SLIPS

28.1 I am advised and believe that the use of voter registration slips is unconstitutional as the Constitution specifies that only persons that are on the voters' roll should be permitted to vote. I am advised of the illegality of a letter that was written by the Second Respondent, indicating that a person with a voter registration slip would be allowed to vote at any polling station in a particular constituency. As averred in regard to the voters' roll, I am concerned by the rampant misuse of the voter registration slips that were ostensibly meant to allow persons who had registered but whose names did not appear on the voters' roll. I am advised that in one constituency alone, Hatfield, at least 500 people were found to have in their possession fake voter registration slips. Some of these persons, who did not reside in the constituency, were arrested by the police. A similar incident was witnessed in Epworth, Mt Pleasant and Harare South constituencies, where persons had been bussed in to vote from other constituencies, using voter

registration slips. Another similar incident in Mt Pleasant constituency is captured on video, evidence of which will be adduced at the trial of this petition.

28.2 The problem is that the abuse of the facility to use voter registration slips on a large scale permitted otherwise ineligible persons to vote in constituencies other than their own. Another serious irregularity was the use of fake voter registration slips, evidence of which will be led at the trial of this petition. It also allowed room for multiple voting, the effect of which was to inflate the number of voters in specific constituencies and across the country. Further evidence demonstrating the abuse of voter registration slips will be adduced at the trial of this petition.

28.3 The problem was exacerbated by the fact that there were insufficient mechanisms to prevent multiple-voting. I have grave concerns over the indelibility of the ink that was used on polling day. We are concerned that the chemical composition of the ink that was used did not meet the necessary internationally recognised standards and it is important to ensure that the chemical qualities of the ink are verified to everyone's satisfaction. The absence of ink-detecting machinery at polling stations coupled with the fact that the ink easily washed away increases concerns that it was not easy to verify whether or not a person had already voted thereby facilitating double and/or multiple voting.

29. LACK OF TRANSPARENCY IN REGARD TO BALLOT PAPERS

29.1 Notwithstanding the legal requirements (section 52A of the Electoral Act), ZEC has not been transparent in regard to the ballot papers used for the election.

29.2 The electoral body failed to provide details on the identity of the printers of the ballot papers, where the printing took place and the distribution of and

accountability for ballot papers. ZEC printed 2 million ballot papers more than the number of voters on the register, this extra representing 35% of the registered voters compared to the world standard of 5%.

29.3 In addition, no information was given on the number of ballot papers printed for special voting. There has been no accountability for the ballot papers, which raises significant risk over the abuse of extra ballots.

29.4 The primary legal concern is that the number of ballot papers printed and distributed to the individual polling stations was never made public, which the ZEC is required by law to do (Electoral Amendment Act 2013, Art 52A).

29.5 To cast away concerns over the ballot paper, a forensic audit conducted by an independent body would be of great assistance.

26. BRIBERY

26.1 The 1st Respondent and his campaign team actively participated in electoral bribery which is otherwise known as "vote buying" The 1st Respondent and candidates from his party were actively involved in doling out food hand-outs and other goodies at campaign rallies, a breach of the Electoral Act and a Code of Conduct signed by all political parties.

26.2 The 1st Respondent's wife Grace Mugabe throughout the campaign period dished out truckloads of foodstuffs — including maize meal, sugar beans, cooking oil and salt — at all rallies addressed by 1st Respondent. This was designed to buy the voter and influence voting parents.

26.3 This practice by the 1st Respondent was widespread and in Mashonaland Central, the said Grace Mugabe gave 22 tonnes of foodstuffs before proceeding to Rudhaka Stadium in Marondera where she again dished out 10 tonnes of

mealie meal, 10 tonnes of sugar beans, 560 cases of cooking oil and salt. This was similarly done in Chitungwiza.

26.4 The 1st Respondent did not stop at using food to bribe the electorate. The 1st Respondent distributed thousands of blankets, torches, flasks and clothing apparel.

26.5 Part XIX of the Electoral Act and specifically section 136 (1)(c) criminalises making "any gift, loan, offer, promise, procurement or agreement to or for any person in order to induce such person to procure or endeavour to procure the return of a candidate at an election or the vote of a voter at an election". Clearly the 1st Respondent through his wife, agents and his own conduct perpetrated a countrywide bribery scheme aimed at skewing voting patterns in his favour.

30.GROSS STATE MEDIA BIAS

30.1 It is also a requirement under the Constitution and our Electoral Act that the state media is obliged to act in a fair and balanced manner during election time. Regrettably, both ZTV and State broadcasting stations acted in a completely partisan manner both before and during the election period.

30.2 As a contestant in this election I believe the electoral playing field was uneven, particularly in respect of the State media coverage. The new Constitution provides that the State must ensure that political parties and candidates contesting an election must be provided with fair and equal access to electronic and print media, both public and private (section 155). Section 61 of the new Constitution also requires the State media to be impartial and to afford fair opportunity for the presentation of divergent views and dissenting opinions. Regional best practice, as reflected in the SADC Guidelines require fair access to the media by political parties and candidates, particularly to publicly-funded

media. Contestants must have reasonable access to the public media in order to disseminate information. The public media must not favour one political party over others.

30.3 The provisions of the law and regional best practice notwithstanding, the state media as represented by the national broadcaster ZBC and national newspapers mainly The Herald and The Sunday Mail, were so blatantly and so obviously biased in favour of First Respondent and his party and against myself and my party. I have studied and believe reports generated by media monitors showing that in the week beginning July 15 2013, ZANU PF got 90 minutes positive coverage during the main news coverage by the ZBC compared to a mere 10 minutes of mostly negative coverage of the MDC-T. In addition, ZANU PF got 24 hours of live coverage of ZANU PF rallies by ZBC compared to virtually no live coverage of any other political party.

30.4 I am advised and believe that this is completely at odds with section 160J (a) of the Electoral Act which provides for equitable treatment of all political parties and candidates "in regard to the extent, timing and prominence of the coverage accorded to them". The report of the MMPZ will be adduced at trial..

WHEREFORE I PRAY for an Order in terms of the Draft

THUS SWORN TO AND DONE AT HARARE ON THIS 9th DAY OF AUGUST 2013

MORGAN TSVANGIRAI

CERTIFIED A TRUE & CORRECT COPY OF THE ORIGINAL

DUDUZILE NDAWANA
LEGAL PRACTITIONER
COMMISSIONER OF OATHS

BEFORE ME

COMMISSIONER OF OATHS

CERTIFIED A TRUE & CORRECT COPY OF THE ORIGINAL

DUDUZILE T NDLOVANA
LEGAL PRACTITIONER
COMMISSIONER OF OATHS

Annexure "A"

MOVEMENT FOR DEMOCRATIC CHANGE (MDC)

ZIMBABWE 31 JULY HARMONISED ELECTION IRREGULARITIES

MOVEMENT FOR DEMOCRATIC CHANGE

Zimbabwe 31 July Harmonised Election Irregularities

Introduction

On July 31 2013 the people of Zimbabwe voted in an election to choose their representatives in local government councils, the House of Assembly the President of the Republic of Zimbabwe. The MDC participated in these elections reservedly, having raised a number of serious irregularities that fundamentally affected their freeness and fairness. Of particular concern to us as a party was the premature and unilateral proclamation of the election date by President Mugabe, which was not only illegal but was in contravention of the spirit and letter of the Global Political Agreement (GPA) signed by the parties in 2008, which stipulated that key national decisions were to be undertaken after sufficient consultation and agreement between the President and the Prime Minister. Of even greater concern was the fact that the proclamation of July 31 as the date for the election was done before the full implementation of agreed issues and failed to adhere to the road map to elections.

1. Sadc and the Zimbabwe Political Crisis

Zimbabwe has been locked in a political crisis characterized by chronic legitimacy crisis, closure of democratic space, the crisis of constitutionalism, economic instability and deepening poverty. Zimbabwe thus presented a grave challenge to economic growth, security and stability of the Sadc region. This crisis reached a crescendo in 2008 when Zanu PF, following electoral defeat on the 29th of March 2008, subverted the will of the people to retain power.

The African Union (AU) at its Summit on the 30th of June 2008 in Egypt mandated the Southern African Development Community (SADC) to mediate for an Inclusive Government between the two formations of the Movement for Democratic Change (MDC) and the Zimbabwe African National Union (Patriotic Front) (ZANU-PF). This process culminated into the Inclusive Government (IG) premised on the Global Political Agreement (GPA) which was incorporated into the Zimbabwe Constitution through the enactment of Amendment 19.

Numerous Sadc Summits were held and roadmaps developed whose primary aim was to create a level political playing field and create conditions for a credible, sustainable, free and fair election in Zimbabwe.

Most recently at the SADC Special Summit held in Maputo, the MDC made its position clear that the conditions obtaining on the ground were not conducive for the holding of a free and fair election and Summit, in its resolutions, urged the government of Zimbabwe to seek an extension of the election date at the courts given the legal hurdle posed by the Constitutional Court's decision that elections must be held by July 31 2013. The Sadc Summit issued detailed directives which were as follows:

1) Government through the ministry of Justice is ordered and directed to make an application to the constitutional court following consultations by all political parties, seeking to move the date of the election from 31 July 2013

2) That the agreed amendments to the Electoral Act which had been purportedly been made into law by the President using the Presidential Powers(Temporal Measures) Act be brought to parliament this Tuesday for debate and adoption.

3) That the SADC facilitation team and the troika team appointed in Livingstone sit in Jomic and not merely receive reports as demanded by Zanu PF.

4) That an Inter Ministerial Committee be appointed to deal with implementation of agreed issues on media reform and the monitoring of hate speech in all media

5) That the security forces publicly state or restate their commitment to the rule of law, in particular their complete adherence to section 208 of the constitution.

6) That within the time parliament has remaining the parties negotiate and make the necessary amendments to POSA, AIPPA, the Broadcasting Act, section 121 of the Criminal Procedure and Evidence Act, etc.

7) That SADC observers be deployed immediately consistent with the SADC Principles and Guidelines Governing Democratic Elections

8) That any other issue and the implementation of the above be overseen by the facilitation team."

However, what was clear to us is that Justice Minister Patrick Chinamasa deliberately filed a very weak case, demonstrating that ZANU (PF) was bent on a July 31 Election.

Granted a new constitution had just been enacted but there were still a number of legislative reforms to be undertaken. Amendments to the Electoral Act for example had not been brought to parliament for debate and adoption and the role of the security sector was yet to be resolved.

The MDC observed several irregularities before, during and after the election and after careful consideration of the same we regret to say that the election failed to meet the SADC minimum standards guiding the conduct of elections and violates international norms and standards for credible elections. A number of Zimbabwean

civil society organisations that observed the elections, which include the Zimbabwe Election Support Network (ZESN), the Zimbabwe Human Rights NGO Forum, the Election Support Network and the Crisis in Zimbabwe Coalition, the Zimbabwe Congress of Trade Unions (ZCTU) have also adjudged the 2013 Elections to be illegitimate. Several irregularities have been cited and these include the state of the voters roll, disenfranchisement of voters, bias of the public media, among other maladies.

Regionally the Civil Society Coalition of Southern Africa also condemned the elections as not credible. In addition the Government of Botswana has said the elections failed to meet SADC's minimum standards for democratic elections and has called for a comprehensive audit of the whole election. Even the AU and SADC Observer Missions also raised fundamental concerns about the conduct of the elections as they pointed out various irregularities that affected the quality of the election.

What has further dented the credibility of the elections is that two ZEC Commissioners have resigned from the Commission a few days after the announcement of results, both citing the irregular conduct of the election as potentially damaging to their credibility.

Below are our observations of irregularities that render the elections not free, not fair and not credible;

2. The Illegality of the July 31 Election

Notwithstanding the fact that the election proclamation was done unilaterally, the July 31 election was illegal for the reason that it was conducted without an Electoral Act as stipulated by Section 157 of the Constitution of Zimbabwe which states that an Act of Parliament must provide for the conduct of elections and referendums.

Furthermore, the proclamation was issued when Parliament was still sitting and could have enacted an Electoral Act to govern the conduct of these elections. Section 157 (4) and (5) of the Constitution state that;

(4) No amendments may be made to the Electoral Law, or to any subsidiary legislation made under that law, unless the Electoral Commission has been consulted and any recommendations made by the Commission have been duly considered.

(5) After an election has been called, no change to the Electoral Law or to any other law relating to elections has effect for the purpose of that election.

This section also recognises that it is only the prerogative of Parliament to enact laws and as such the legislature cannot abdicate that role to any organ of the state. In the event that a Statutory Instrument is issued, Section 134 (f) clearly posits that;

(f) Statutory instruments must be laid before the National Assembly in accordance with its Standing Orders and submitted to the Parliamentary Legal Committee for scrutiny.

As these laid down procedures were not followed when President Mugabe issued Statutory Instruments 85, 86, 87, 88 and 89 of 2013, it renders these statutory instruments null and void, which reinforces the fact that the election was illegal.

3. Registration of Voters

The voter registration exercise that preceded the election was marred by various irregularities that severely compromised the credibility of the election. The distribution of mobile voter registration teams was carefully manipulated to frustrate registration of voters in known MDC strongholds. For example, Mashonaland East which has a total population of 1 337 059 and is a ZANU (PF) stronghold based on results of the 2008 Elections, had 18 teams while Harare, which has a total population of 2 098 199 and his an MDC stronghold based on the 2008 Elections, had only 5 teams. As a result Harare had only 27 000 people at the end of the 30 day intense registration process, while Mashonaland East managed to register over 50 000 people. Further analysis of the 2013 Voters Roll and the 2012 Census Report by the Zimbabwe Election Support Network (ZESN), a non-partisan civil society organization involved in election monitoring, reveals that about 67.94% of urban potential voters was registered, while about 99.97% of rural potential voters were registered. This means 750 000 people in urban areas were disenfranchised by the process.

Another irregularity is that the limited time allocated for voter registration and the stringent requirements resulted in the disenfranchisement of over 2 million potential voters nationwide, 350 000 of these in Harare alone. In addition, and in spite of the adoption of the new Constitution, which restored voting rights to previously disenfranchised citizens, a majority of the so-called aliens were denied an opportunity to register as the registration authorities demanded dubious registration requirements contrary to the provisions of the new Constitution. It is therefore clear that ZANU (PF), working in cahoots with the Registrar General's office and ZEC, had a well-orchestrated plan to rig this election from the onset.

4. The Voters' Roll

The importance of the Voters Roll to the integrity of an election process cannot be overemphasised. **Section 21 (6)** of the Electoral Act stipulates that;

Within a reasonable period of time after nomination day in an election, the Commission shall provide;
(a) Free of charge, to every nominated candidate, one copy in electronic form of the constituency voters roll to be used in the election for which the candidate has been nominated; and
(b) At the request of any nominated candidate, and on payment of the prescribed fee, one copy in printed form of the constituency voters roll to be used in the election for which the candidate has been nominated.

This provision was violated by ZEC. Several written requests to ZEC for the MDC to obtain a copy of the voters roll were ignored. The MDC only managed to obtain a copy of the voters roll on the 29th of July 2013 though a court application barely two days before the actual day of voting. To make matters worse the voters roll was in hard copy, thereby rendering it useless for our own analysis. It is inconceivable that ZEC expected us to analyse a hard copy of the voters roll with 6 million registered voters in less than 24 hours. Moreover, what was baffling was that the Commission claimed that it could only avail the hard copy when it is common cause that a hard

copy of any document is printed from a soft copy. At any rate it is cheaper to avail a soft copy than a printed one!

However, an analysis done in July 2012 by ZESN revealed grave discrepancies between the 2012 Census and voter registration data. For example, the 2012 Census Report shows that there are 831 482 people between the ages of 40 and 49 years yet the voters roll had 1 250 989 people in the same age group. Further, the 2012 Census Report shows that there are 155 653 people above 80 years yet the voters roll shows that there are 343 187 people of the same age group. The same analysis also revealed that there are over 250 000 dead people on the voters roll. This is why we needed access to the voters roll to highlight these discrepancies. It is now clear to us that this was a carefully designed ploy to mask ZEC's shenanigans to rig the election in ZANU (PF)'s favour.

A true case of the distortions on the voters roll is Harare North where thousands of registered voters on the voters roll used addresses of non-existent housing cooperatives. The following is a list of housing cooperatives that have been in this scam are;

i. 18th April Housing Cooperative
ii. Alpha Housing Cooperative
iii. Blacks Housing Cooperative
iv. Casanova Housing Cooperative
v. Dzivareshungu Housing Cooperative
vi. E. Kadungure Housing Cooperative
vii. First Zororo Housing Cooperative
viii. Gaza Housing Cooperative
ix. Glen Hat Housing Cooperative
x. Greater Harare Housing Cooperative
xi. Greeting Housing Cooperative
xii. Gukurahundi Housing Cooperative
xiii. Harare North Housing Cooperative
xiv. Hatcliffe North Housing Cooperative
xv. Imbamukadzi Housing Cooperative
xvi. Kinte Kunda Housing Cooperative
xvii. Kubatana Housing Cooperative
xviii. Kufatichitonga Housing Cooperative
xix. Kugara Kushinga Housing Cooperative
xx. Kuguta Kushanda Housing Cooperative
xxi. Kujeka Housing Cooperative
xxii. Kukura Kuroja Housing Cooperative
xxiii. Kuvakanaishe Housing Cooperative
xxiv. Low Comfort Housing Cooperative
xxv. Mount Pleasant Housing Cooperative
xxvi. New Park Valley Housing Cooperative
xxvii. Old Hararians Housing Cooperative
xxviii. Old Hatcliffe Housing Cooperative
xxix. Rukuvhute Housing Cooperative
xxx. Tinashe Housing Cooperative
xxxi. Ukubambana Housing Cooperative
xxxii. Witness Mangwende Housing Cooperative

xxxiii. Zvakatanga Sekuseka Housing Cooperative
xxxiv. Consortium Housing Cooperative
xxxv. Fast Track Housing Cooperative
xxxvi. Hatcliffe Phase Two Housing Cooperative
xxxvii. Kubatana Kwakanaka Housing Cooperative
xxxviii. Kugara Housing Cooperative
xxxix. Kuwanaishe Housing Cooperative
xl. Look-East Housing Cooperative
xli. Mufaro Housing Cooperative
xlii. Rukuvhenje Housing Cooperative

It must also be noted that Sally Mugabe Housing Cooperative is in Goromonzi West constituency yet names on the voters roll of Harare North are registered using that address.

5. Involvement of Nikuv International Projects

What is also worrying is the involvement of an Israeli firm, Nikuv Projects International, an Israeli firm, in the development, management and manipulation of the voters roll. In a letter dated 12 July 2013, ZEC denied the involvement of Nikuv in the preparation of the voters roll. However, we have it on record that Nikuv has been operating in Zimbabwe since the 1990s. We present in the table below payments that were done by the Registrar General's Office to Nikuv between February and July 2013.

DATE	AMOUNT (US$)	TELEGRAPHIC TRANSFER REFERENCE
04 February 2013	$202,000.00	130204FBCOTT0668
08 February 2013	$198,000.00	130208FBCOTT0796
11 February 2013	$203,000.00	130211FBCOTT0820
12 February 2013	$200,000.00	130212FBCOTT0837
14 February 2013	$197,000.00	130214FBCOTT0915
18 February 2013	$200,000.00	130218FBCOTT0959
21 February 2013	$201,000.00	130221FBCOTT1063
25 February 2013	$199,000.00	130225FBCOTT1122
05 March 2013	$202,000.00	130305FBCOTT1298
08 March 2013	$203,000.00	130308FBCOTT1392
11 March 2013	$174,890.00	130311FBVCOTT143
13 March 2013	$200,000.00	130313FBCOTT1492
18 March 2013	$204,000.00	130318FBCOTT1595
18 March 2013	$199,000.00	130318FBCOTT1594
22 March 2013	$201,000.00	130322FBCOTT1693
25 March 2013	$197,000.00	130325FBCOTT1724
08 April 2013	$195,000.00	130408FBCOTT1952
09 April 2013	$250,000.00	130409FBCOTT1988
11April 2013	$200,000.00	130411FBCOTT2052
16 April 2013	$203,000.00	130416FBCOTT2136
17 April 2013	$202,000.00	130417FBCOTT2203
23 April 2013	$201,500.00	130423FBCOTT2304
26 April 2013	$199,000.00	130426FBCOTT2394
30 April 2013	$200,100.00	130430FBCOTT2447
30 April 2013	$202,500.00	130430FBCOTT2458

06 May 2013	$198,500.00	130506FBCOTT2587
09 May 2013	$152,375.00	130509FBCOTT2694
13 May 2013	$201,000.00	130513FBCOTT2738
14 May 2013	$200,500.00	130514FBCOTT2801
21 May 2013	$200,600.00	130521FBCOTT3005
22 May 2013	$200,700.00	130522FBCOTT3041
24 May 2013	$201,100.00	130524FBCOTT3152
29 May 2013	$201,400.00	130529FBCOTT3236
30 May 2013	$200,300.00	130530FBCOTT3288
03 June 2013	$200,200.00	130603FBCOTT3386
07 June 2013	$201,500.00	130607FBCOTT3527
10 June 2013	$199,500.00	130610FBCOTT3574
12 June 2013	$202,000.00	130612FBCOTT3672
14 June 2013	$199,000.00	130614FBCOTT3749
19 June 2013	$200,000.00	130619FBCOTT3862
21 June 2013	$203,000.00	130621FBCOTT3928
01 July 2013	$201,000.00	130701FBCOTT4154
04 July 2013	$201,000.00	130704FBCOTT4243
09 July 2013	$200,700.00	130709FBCOTT4329
10 July 2013	$200,600.00	130701FBCOTT4428
12 July 2013	$201,000.00	130712FBCOTT4470
18 July 2013	$200,200.00	130718FBCOTT4626
22 July 2013	$200,500.00	130719FBCOTT4701
23 July 2013	$199,700.00	130723FBCOTT4756
25 July 2013	$200,100.00	130725FBCOTT4813
25 July 2013	$177,620.00	130725FBCOTT4897
26 July 2013	$200,250.00	13072FBCOTT4914
30 July 2013	$200,000.00	130730FBCOTT4961
TOTAL		**$10, 578, 335.00**

6. Ballot Papers

Section 51A of the Electoral Act compels ZEC to disclose to political parties information pertaining to the printing and distribution of ballot papers. On the 17th of July 2013 we wrote to ZEC (see attached letter) demanding information on the number of ballot papers that had been printed for the Special Vote and by who, how many had been forwarded to each polling station. how many had been printed for the National Election and by whom, and the distribution plan for the same. Regrettably ZEC did not respond and by the day of polling our party was not furnished with this vital information. Our own investigations show that ZEC commissioned a shadowy printing firm to print ballot papers and that more than 8 million ballot papers were printed. The question is why would ZEC print 8 million ballot papers in a country where 6 million voters are registered and only 3.5 million people voted in the referendum?

A reconciliation of the election results shows that a total of 3 410 767 votes were cast in the Presidential Election. From the 8 million that were printed it is clear that more ballots (4 589 233) remain unused and the Commission has not accounted for them.

Even if we adjust for spoilt ballots, a huge number of ballots would still remain unaccounted for.

7. Access to the Public Media

Section 160 (g) of the Electoral Act compels the public media to grant equal access to political parties and candidate contesting elections to market their manifestos and to present their ideas and programmes to citizens. This was not the case in the 2013 Election as the Zimbabwe Broadcasting Corporation, through both TV and radio, was blatantly biased towards ZANU (PF). ZBC failed to live up to its public service mandate to provide fair, accurate and equitable coverage of all shades of political opinion in Zimbabwe. Its claim that it had not give coverage to the MDC because we had failed to submit our "lists of programmes" is patently false. On 7 July we invited ZBC to cover our Elections Manifesto launch at Rudhaka Stadium in Marondera, Mashonaland East Province, to which the state broadcaster wrote back demanding $164 000 to cover the event. On ????? we wrote to ZEC expressing our displeasure on the conduct of the national broadcaster and we never got any response. Moreover, we submitted and paid for TV advertisements through a Zimbabwean advertising firm, Gary Thompson and Associates (GTA) but these were never flighted.

The Media Monitoring Project (MMPZ), a media monitoring civic group made the following observations;

'It is common cause that ZBC's bias favouring ZANU PF and its presidential candidate is so extreme that it clearly falls into the category of propaganda. This has been so for years and, as in previous "election periods", has intensified during this election campaign.

Even when footage of MDC-T rallies is shown on ZTV, they are never covered live, as they have done for ZANU PF's star rallies. And their news reports are clearly incomplete, distorted by editorial intrusions and denied equitable treatment, which imposes the standard that however ZBC treats one party, it must treat the others similarly.

MMPZ unreservedly condemns this grossly unprofessional conduct by the national broadcaster, not just because it violates all the local, regional and continental standards and protocols of a broadcasting station mandated to serve the nation's information needs

It is precisely for these reasons that the MDC had called for media reforms before the elections were held to allow for political players to compete fairly.

8. Special Voting

The Special Voting Process was manipulated to rig the election in favour of ZANU (PF). While the Special Vote is designed to give members of the security establishment and other civil servants an opportunity to vote before they are deployed to serve outside their polling wards on Election Day, what was baffling was that the entire Zimbabwean police force was instructed to apply for Special Voting. We raised concern about this as we wondered how feasible it is that all police officers in Zimbabwe would be deployed somewhere on polling day. To make matters worse the number of police officers that were issued with Special Voting certificates by the ZEC was inflated. While records at the Ministry of Home Affairs and at Treasury (these are

ministries we controlled) show that Zimbabwe has a total police force of 38 000, ZEC issued certificates to over 60 000 to the Police. This was a deliberate ploy to manipulate the process through ballot stuffing.

The actual voting process for the Special Vote was marred by several irregularities. ZEC failed to dispatch ballot papers to most polling stations resulting in long queues and chaos. At Mount Pleasant Hall in Harare the situation became riotous and windows were smashed as police officers jostled to vote. What irked the genuine police officers is that voting priority was given to so called 'police recruits' who were bussed in from unknown places while genuine police officers were denied an opportunity to vote. At the closure of polling, despite a near 12 hour extension, only 30 000 of the 70 000 had voted. ZEC applied to the Constitutional Court to allow those that had failed to vote to do so on the day of the national election and the order was granted. This opened another avenue for manipulation. At the opening of polling on July 31, the names of people that had voted through the Special Voting process were not deleted from the Voters Roll, meaning that those that had voted could vote again.

The transmission of ballot papers to the Command Centre was not done in a transparent and open manner, leaving us with reasonable suspicion that some of the ballot boxes were switched during transportation from the various centers around the country to Harare. Moreover, after ballot papers were dispatched to their respective ward centers they were mixed with other ballots there and not counted separately, meaning that we cannot have an audit of the special ballots at polling station level.

9. Intimidation of Voters

There was widespread intimidation of voters by known ZANU (PF) elements and members of the security establishment targeted at known MDC supporters in rural and peri-urban communities. The modus operandi in all of the cases was that a week before the election, known MDC supporters were called to meetings chaired by either the village head or a ZANU (PF) functionary and were instructed to pretend that they could not read or write and needed assistance on election day, or they risked being killed.

In Rushinga for example on the 28th and 29th of July, village heads were called to a meeting by the headman and ZANU (PF) candidate Wonder Mashange. At the meeting they were threatened with death if their people did not vote for ZANU (PF). They also instructed to identify all villagers suspected of being MDC supporters and ensure that on voting day they were assisted to vote. As a result there were 6003 assisted voters in this constituency. For a country with a 98% literacy rate this is baffling! In ward 15 of the same constituency, Mr. Gatsi, a Woodwork teacher at Marymount Secondary School and Mr. Zondo, the Chairperson of the School Development Committee (SDC) at the same school were assisted to vote.

While the electoral law says assisted voters are supposed to go into the booth with a nominee of their choice, in this election they were assigned an assistant by the village head or by ZANU (PF). In Ward 15 of Rushinga, Nesbert Chizanda, a known ZANU (PF) youth member assisted Simba Gondo, Lisa Magara, Clara Magara, Ranga Magara, Ngoni Magara, Paul Kademeteme, Pester Kademeteme, Never Magara, Rudo

Gondo and others to cast their votes. This was also the case in Wards 13, 6, 17, 18, 1, 7, 3 and 21.

In Muzarabani South, Mashonaland Central Province, ZANU (PF) set up bases two days before the elections where state intelligence operatives ordered the village heads to take down the serial numbers of the ballot papers they would use so that the villages would follow suit, failure of which they would face unspecified action. The ZANU (PF) candidate, Christopher Chitindi, handed out torches that he said should be used to hunt down MDC supporters. At the same meeting teachers and nurses were instructed to pretend that they could not read or write so that they would be assisted to vote. Chief Chiweshe also threatened to expel anyone who voted for the MDC from his area.

10. Abuse of the Temporary Registration Slips

The 31 July harmonised election was also marred by the abuse of voter registration slips. During the mobile vote registration, temporary voting slips were issued to new registrants, whose names were now supposed to be captured on the voters roll. One of the reasons that the Registrar's Office gave for its refusal to avail a copy of the voters roll to the MDC was that they were capturing names of those that had registered during the mobile voter registration process on the voters roll. This basically means every person who had registered would appear on the voters roll rather than producing voter registration slips as evidence of registration. However, on Election Day these slips were accepted as proof of registration and voters whose names were not on the roll were allowed to vote.

On Election Day, we unearthed a scam in which tens of thousands of fraudulent slips were issued out and were being used to vote. In Hatfield constituency six people were arrested on Election Day and they confessed to be part of a large group of people that had been issued with fake temporary registration slips. Targeted proliferation- 28 constituencies where ZANU PF lost in 2008 doubled in 2013. We attach herein samples of the authentic voter registration slip and the fake ones obtained on election day. It is also evident that the fake registration slips do not have a block number meaning they could be used to vote at any polling station in a given constituency.

11. Bussing of Voters

The bussing of voters to targeted constituencies was another irregularity that compromised the integrity of the elections. Our own investigations show that there were targeted constituencies where voters were bussed in to double vote using the fraudulent temporary voting slips. In some cases parallel polling stations were created for the bussed voters and our election agents did not observe these. In the case of Mount Pleasant for instance a parallel polling station was created on Churchill Road where thousands of so called police recruits voted. Busses belonging to a parastatal company (ZUPCO) were driven to the centre with thousands of youths who voted there. We have video evidence highlighting how people were bussed from as far as Honde Valley in Manicaland to vote in Mount Pleasant in Harare.

This was also the case in Harare East where over 15 000 people were registered under dubious addresses that included security establishments such as Chikurubi Maximum Prison, Chikurubi Training Camp and Highlands Police Station but were then bussed in from outside Harare East constituency. We recorded similar cases in

Chikanga-Dangamvura in Manicaland where voters were bussed from nearby farms to beef-up the Zanu PF in the area. In Mbare most of the voters have no Mbare residential addresses but were from Mupedzanhamo, Siyaso, Koffman, and Visions Roadside. These people were forced to surrender their IDs or they would lose their market stands and they were then ordered to vote for ZANU (PF). Similar cases were also recorded in Harare South, Hatfield, and Motopo South.

The results of the election also show that there was well-calculated plan to bring voters outside to influence the outcome of selected constituencies. There are some abnormal results that are impossible to explain as genuine changes to the voters' preference. The most obvious of such results are those where ZANU PF won a seat that MDC had held in 2008 and where the change is extremely high. The table below shows the 27 constituencies where ZANU PF won an earlier MDC-T seat and more than doubled their support.

Constituency	2008 results			2013 results		
	MDC-T	ZANU PF	Total votes cast for main contestants[1]	MDC-T	ZANU PF	Total valid votes
Harare						
Mount Pleasant	3875	1738	5613	3817	7945	12165
Mbare	7520	6121	14936	10932	14764	26803
Harare North	6710	3135	9845	6555	7917	15785
Epworth	6220	4758	10978	7951	15468	25248
Manicaland						
Makoni North	5055	3657	8712	5236	9412	14648
Mutasa South	8207	3409	11616	7932	8963	19297
Mutare West	7597	7577	15174	7483	16087	23570
Mutasa North	9396	4882	14278	7954	10151	18653
Nyanga North	8312	3931	13920	7985	10840	18825
Nyanga South	8029	5513	13542	6165	11752	18989
Mashonaland Central						
Bindura South	6059	5752	12940	4995	15441	21297
Mazowe Central	5573	4136	10803	3998	10823	15477
Mashonaland East						
Goromonzi South	6456	5305	13102	11102	17234	29716
Marondera Central	8022	3170	11794	7892	9378	17696
Murehwa West	7334	6313	13647	3665	12779	18055
Mashonaland West						
Chegutu West	6772	3713	11235	7399	11130	19463

[1] MDC-T, MDC, ZANU PF and Independents only, not the marginal parties.

Norton	6070	4516	11532	9360	10592	20975
Hurungwe West	5582	4203	9785	2553	8485	12295
Kadoma Central	8180	2738	10918	9005	9571	19756
Kariba	7019	5502	13903	7545	13849	22839
Masvingo						
Chiredzi West	6259	4542	11366	7978	12655	22026
Gutu South	5757	3559	10886	3723	7927	11650
Masvingo Urban	9162	4135	13841	10424	10988	22461
Masvingo Central	4905	4793	9698	3337	9931	13699
Zaka Central	5972	4974	12201	4158	10604	15487
Matabeleland North						
Hwange West	6318	2840	12719	5541	6864	14057
Midlands						
Kwekwe Central	5081	2501	8246	5760	6051	12319

The next table shows the 31 constituencies which ZANU PF held in 2008 but where they more than doubled their vote.

Constituency	2008 results			2013 results		
	MDC-T	ZANU PF	Total votes cast for main contestants[2]	MDC-T	ZANU PF	Total valid votes
Harare						
Harare South	4389	7111	12319	7472	20069	29074
Manicaland						
Chipinge Central	5862	6377	12239	4290	12995	18215
Mashonaland Central						
Bindura North	5465	9093	15835	5485	23937	30066
Guruve South	4298	9284	13582	2069	18804	21568
Mazowe West	2410	5148	7558	1411	14383	16288
Mazowe South	4052	4109	9562	4116	11431	16483
Mazowe North	2508	5466	8691	1476	13338	15135
Mbire	6137	9610	15747	2332	19958	22958
Mt Darwin South	2698	9115	11813	1401	19680	21413
Muzarabani North	3918	7691	12582	607	16649	17418
Muzarabani South[3]				564	21310	22003
Shamva South	2669	8956	11625	1514	22332	24284

[2] MDC-T, MDC, ZANU PF and Independents only, not the marginal parties.
[3] The 2008 numbers are missing.

Mashonaland East						
Goromonzi West	5931	6193	12124	7123	12758	20421
Goromonzi North	4845	5626	10471	4134	11874	16885
Marondera West	2132	4284	7996	3665	12779	18055
Marondera East	2268	6514	9570	2113	15626	17975
Mutoko East	5238	7328	12566	1339	15064	16729
Mutoko North	3163	6922	14173	1989	16809	19095
Wedza North	3586	6267	9853	1536	14277	16546
Mashonaland West						
Hurungwe Central	1399	4997	6890	4267	12708	17841
Magunje	4264	4587	10460	3000	9473	13539
Chakari	2595	8543	11138	1642	19540	21182
Muzvezve	3906	7774	11680	3029	18832	22430
Makonde	2928	6526	13089	1569	15675	17673
Zvimba East	3554	5197	8751	4008	13113	17873
Zvimba South	2907	6752	9659	2536	13745	16831
Masvingo						
Gutu West	4082	5054	9136	2232	13499	16296
Masvingo North	4450	4799	9249	3277	10358	14434
Matabeleland North						
Umguza	2846	7065	12031	5387	16025	23478
Matabeleland South						
Beitbridge East	2194	4741	8046	3394	10191	15120
Midlands						
Shurugwi South	1977	5068	9745	2515	11506	14353

Out of the once which were won even in 2008, the following were won in 2008 with a margin of less than ten per cent. There was therefore a risk for ZANU PF of losing them in 2013: Chipinge Central, Mazowe South, Goromonzi West, Magunje and Masvingo North.

Tabulation of Results

It is interesting to see which parties won the close races. There are about nine swing constituencies where the margin of victory in 2008 was less than 10%. In 2013 ZANU (PF) won all of these as shown in the table below.

Constituency	**2008 results**			**2013 results**		
	MDC-T	**ZANU PF**	**Won by**	**MDC-T**	**ZANU PF**	**Total valid votes**
Harare						
Chitungwiza	6243	4597	MDC-T	7888	8126	ZANU

South						PF
Mashonaland West						
Kadoma Central	8180	2738	MDC-T	9005	9571	ZANU PF
Masvingo						
Masvingo Urban	9162	4135	MDC-T	10424	10988	ZANU PF
Matabeleland North						
Lupane East	5424[4]	3368	MDC-N	5305	5537	ZANU PF
Nkayi North	3234[5]	4634	ZANU PF	5102	5184	ZANU PF
Matabeleland South						
Matobo North	3503	3102	MDC-T	5219	5300	ZANU PF
Matobo South	3226	2858	MDC-T	4596	4692	ZANU PF
Midlands						
Kwekwe Central	5081	2501	MDC-T	5760	6051	ZANU PF
Zvishavane-Ngezi	3186	4632	ZANU PF	8720	9015	ZANU PF

12. Role of Traditional Leaders

Chapter 15 Section 281 of the Constitution of Zimbabwe stipulates that:

(2) Traditional leaders must not—

(a) be members of any political party or in any way participate in partisan politics;

(b) act in a partisan manner;

(c) further the interests of any political party or cause; or

(d) violate the fundamental rights and freedoms of any person.

However, in most parts of the country, traditional leaders were interfering with the MDC campaign. In Masvingo for instance, Chief Chitsa banned our door-to-door campaigns whilst Chief Nhema in Zaka was openly campaigning for Zanu PF and stopped all MDC activities in the area. In Makonde at Hombwe polling station a village head by the name of Chaitezvi collected all the IDs of registered voters in his village and later distributed them to the owners at the polling station on voting day. At the same poling station Village Head Sidney Kadema threatened queuing voters and said if they voted MDC they would be thoroughly beaten by the military. In Zvimba

[4] MDC-N

[5] MDC-N

South, Village Head Gwekwerere also threatened villagers with unspecified action if they voted MDC. In Mutare South Headman Chitiyo was a ZANU (PF) Election Agent, Headman Mwashita was a polling agent at Gwese, and Headman Mwatsika was an agent at Gombakomba Primary School. In Uzumba, Mashonaland East, at every polling station kraal heads distributed cards where voters were asked to take down the serial numbers of the ballot papers.

In Gokwe Sesame, Midlands Province, Headman Marumise, Headman Livingstone Nkomo, Headman Edmore Makore, Headman Godknows Mvurayapenga and Headman Dozora Marimbe were threatening villagers and instructing them to vote for ZANU (PF). In Zvishavane Ngezi, village heads produced a list of all villagers and allocated them voting positions. This was clearly intended to intimidate them as they would think their vote would be easily identified.

In Muzarabani South, Mashonaland Central Province, Chief Chiweshe threatened to evict everyone who would vote MDC from the area. In Masvingo North, Ward 13, Chief Mugabe, in Ward 14 Chief Chikwanda and in Ward 1 Headman Chinyangadza threatened the same action if villagers voted for the MDC.

In Hwedza South, Mashonaland East, Chief Chigwedere, a week before election, at the burial of Chief Ruzane, reminded people that the events of the 2008 runoff election would revisit them if they voted for the MDC.

In Shurugwi South, Midlands Province, soldiers under the command of one Everton Ndokanga based at Lazy 9 Farm, were threatening villagers, burning MDC T-shirts and pulling down

It is abundantly clear that in most rural areas traditional leaders were clearly acting on instructions from ZANU (PF) as they lined up villagers and instructed them on how to vote.

10. Disenfranchised Voters

Hundreds of thousands of voters were turned away on polling day because of various reasons. The first category of voters that were turned away is that of those who had registered and had inspected the voters roll but were then surprisingly told that their names were not on the roll. The second category is that of voters who had registered in specific wards but were told that their names were appearing in a different province altogether. The third category is that of voters who were told they had already voted yet they had not done so. The fourth category is that of voters that were turned away because their first, surname and /or ID number were mismatched on the voters roll.

11. Accreditation of Election Observers

The quality of an election is determined by the extent to which it is subjected to both domestic and external scrutiny. In this election there was cherry picking of observers as ZANU (PF) elements in the inclusive government arm-twisted the electoral commission to invite observers only from 'friendly' countries and organisations. This meant that observer groups from the United States, Europe and Australia were barred from observing the elections.

12. Presence of Police Officers in Polling Stations.

In another violation of the electoral law there was a heavy presence of police officers at polling stations. At the Churchill Road Polling Station in Mount Pleasant Constituency, there were no less than ten police officers inside the polling station at a given time.

13. Lack of Compliance with SADC Guidelines

The table below demonstrates an assessment of the handling of the conduct of the harmonised elections in Zimbabwe against the SADC Principles and Guidelines on the Conduct of Elections. This is the regionally accepted standard, which is used to determine whether or not the election was free and fair.

The first column itemises the issues; the second outlines the SADC principle or guideline as extracted from the SADC Principles and Guidelines and the third column provides an assessment of whether or not the conduct of elections satisfied the particular SADC principle or guideline. The scale of classification shows whether in respect of each principle or guideline the conduct of elections was: ***Compliant; Partially Compliant or Non-Compliant.***

As the table demonstrates, out of the 15 guidelines and standards assessed, there was virtually no compliance in regard to 8 and only partial compliance in respect of 6. Only one principle was fully complied with regarding holding elections at regular intervals. The most critical of the guidelines regarding the existence of an updated and accessible voters' roll was not complied with at all. With the failure to provide an electronic voters' roll, ZEC remains non-compliant in respect of this important benchmark, placing the transparency and credibility entire election process in serious jeopardy.

ITEM	SADC GUIDELINES AND PRINCIPLES	COMPLIANCE
1	*2.1.1 Full participation of the citizens in the political process*	**NON-COMPLIANT** -The voter registration exercise which closed on 9th July 2013 left thousands of persons unregistered. Many were so-called aliens and first-time voters in urban areas. -ZESN, a leading elections NGO, estimates that about750,000 persons, mainly in urban areas were turned away from polling stations
2	*2.1.2 Freedom of association;*	**NON-COMPLIANT** -Across rural areas, traditional leaders and military personnel forced people to associate with ZANU PF and to disassociate with opposition parties. -In addition, thousands of rural voters were forced to declare illiteracy and forced to be assisted by designated persons aligned to ZANU PF.
3	*2.1.3 Political tolerance*	**PARTIAL COMPLIANCE** -The levels of tolerance improved from 2008 but in rural areas voters were subjected to intimidatory tactics to force them to disassociate with the opposition and to toe the ZANU PF line. -State media demonstrated no political tolerance, especially towards the MDC.
4	*2.1.4 Regular intervals for elections as provided for by the respective National Constitutions;*	**COMPLIANT**
5	*2.1.5 Equal opportunity for all political parties to access the state media;*	**NON-COMPLIANT** -State media was biased and openly supported ZANU PF and its Presidential candidate. For example, in the week beginning July 15 2013, ZANU PF got 24 hours of live coverage of its rallies by ZBC TV compared to virtually no live coverage of rallies of any other political party. Complete refusal to reform the state media.
6	*2.1.6 Equal opportunity to exercise the right to vote and be voted for;*	**NON-COMPLIANT** -Persons who were refused the chance to register were disenfranchised. -Persons who were turned away from polling stations, even when they had voted in those wards previously were disenfranchised -Persons in the Diaspora were barred from exercising their right to vote -Some provinces were allocated more polling stations compared to others, despite the latter having higher population densities, e.g. Harare province with an estimated 1.2 million voters (the highest in all of the provinces) had 830 polling stations while Manicaland province, with an estimated voter population of only 807,300 has been allocated 1297 polling stations. Also the Midlands province has been given 1341 polling stations with an estimated voting population of a little over 762,000.
7	*2.1.7 Independence of the Judiciary and impartiality of the electoral institutions*	- Judiciary - omitted by Veritas

		NON COMPLIANT -ZEC has failed the transparency test, failing to provide the basic information requested of them and required by law. The electoral body did not appear to be in control of the electoral process. Lack of professionalism and independence has forced two of its Commissioners to resign in the aftermath of the election.
8	*2.1.8 Voter education.*	**PARTIAL COMPLIANCE** -ZEC took the greater space in conducting voter education although there was clearly insufficient time for effective delivery given the short period between proclamation and the election date. -Further, civil society was severely restricted from carrying out voter education.
9	*4.1.1 Constitutional and legal guarantees of freedom and rights of the citizens;*	**PARTIAL COMPLIANCE** -While the new Constitution contains extensive provisions guaranteeing the rights of citizens, there has been no legislative reforms of restrictive laws such as the Public Order and Security Act and the Access to Information and Protection of Privacy Act. The prosecution authorities continue to use the notorious section 121 of the Criminal Procedure and Evidence Act which ensures that persons admitted to bail nevertheless remain in police custody. Effective enforcement of constitutional rights remains a key issue of contention.
10	*4.1.2 Conducive environment for free, fair and peaceful elections*	**PARTIAL COMPLIANCE** -Although the environment was seemingly peaceful, this was a façade for a litany of problems that affected the electoral atmosphere. For example, the media landscape remained skewed in favour of ZANU PF and traditional leaders exerted undue influence on voters barring them from exercising their free will. The threat of violence, based on previous experiences remained a key problem. The security services chiefs did not retract their previous threatening statements to the effective.
11	*4.1.3 Non-discrimination in the voters' registration;*	**NON-COMPLIANT** -Although the new Constitution restored the rights of citizens who had been previously categorised as aliens, the handling of the voter registration process restricted their ability to register. Consequently, thousands of former aliens were left disenfranchised. -An analysis of the voters roll shows that there is discrimination against young voters as indicated by their significant under-representation on the voters' roll. The percentage of registration of under 25 year-olds is more than 10% less in Zimbabwe than comparable countries such as South Africa (16.5%), Kenya (16.86%) and Zambia (20,61%). -There was also significant discrimination between rural and urban voters – with more registration centres having been deployed in rural areas than in urban areas. ZESN's analysis of the voters roll identified a significant disparity with registration in urban wards at 67.94% and those in rural wards at 99.97%.
12	*4.1.4 Existence of updated and accessible voters roll;*	**NON-COMPLIANT** -ZEC and the Registrar-General have to date refused to avail the updated

		electronic voters roll to parties and candidates. There is no voters roll which is easily searchable and analysable as required by law. -They only availed printed copies of the voters' roll (two truckloads of paper) at 5pm on election day, rendering the exercise pointless. -The net effect is that parties and candidates participated in the elections without a credible and transparent voters' roll, making it virtually impossible to make clear determinations whether persons who were voting were eligible to do so or persons who were turned away were not eligible to vote. -The absence of an up-to-date voters' roll opened an opportunity for manipulation as thousands of people were allowed to vote using voter registration slips, most of which were not authentic.
13	*4.1.5 Timeous announcement of the election date.*	**NON-COMPLIANT** -There was very limited time between the announcement and the election date. Consequently, the processes were rushed, resulting in a chaotic Special Voting system even by ZEC's own admission. Although SADC recommended an extension of time for the election date, this was strongly resisted by ZANU PF with the concurrence of the courts. The poor timing showed in ZEC's lack of preparedness in conducting an efficient and fair election.
14	*4.1.7 Polling Stations should be in neutral places;*	**PARTIAL COMPLIANCE** -There have been complaints that some polling stations were not located in neutral places.
15	*4.1.8 Counting of the votes at polling stations;*	**PARTIAL COMPLIANCE** -In the majority of cases, counting was done at polling stations.
16	*4.1.10 SADC Election Observation Missions should be deployed at least two weeks before the voting day*	N/A

lname	fname	gender	dob	id no	address	block	constacy_no	constituency	ward_no
AARON	AARON	M	23/11/1976	59 012288-Q-59	12374 UNIT N CHITUNGWIZA	380363	41	CHITUNGWIZA SOUTH	23
AARON	AARON	M	23/12/1976	59-000410-E-59	VIL NYAMADZAWO RD SEKE CH SEKE SEKE	30359	180	SEKE	7
ABRAHAM	SKIWE	F	12/12/1944	45 028836-L-45	VIL CHIWOTA CH KANDEYA MOUNT DARWIN	30545	142	MOUNT DARWIN SOUTH	23
ABRAHAM	SKIWE	F	12/12/1944	45-9026636-V-45	VILLAGE CHIWOTA CH KANDEYA MT DARWIN	30545	142	MOUNT DARWIN SOUTH	23
AKUWETA	ENIA	F	25/12/1938	04 2009134-B-04	VIL NYAHUNDA HOM NYAHONDA CH MAZUNGUNYE BIKITA	90704	4	BIKITA SOUTH	4
AKUWETA	ENIA	F	25/12/1938	42 009134-B-04	VIL NYAHUNDA HOM NYAHUNDA CH MAZUNGUNYE	90704	4	BIKITA SOUTH	4
ANTONIO	FRIDAY	M	16/04/1975	32-123863-R-32	PLOT 41 CASKEY CHEGUTU	151132	22	CHEGUTU EAST	22
ANTONIO	FRIDAY	M	16/04/1975	32 120214-A-32	MOUNT CAMEL FARM CHEGUTU	151132	22	CHEGUTU EAST	22
ASHE	WELCOME	M	27/08/1980	24-1248805-L-70	KENT ESTATE COMP CHEGUTU	21132	172	NORTON	15
ASHE	WELCOME	M	27/08/1980	24-128805-L-70	KENT ESTATE COMPOUND NORTON CHEGUTU	21132	172	NORTON	15
BADZA	MARGARETH	F	10/08/1986	58-232064-Z-58	VIL MABHEKA CH GWESELA KWEKWE	20858	204	ZHOMBE	10
BADZA	MINOR	I	10/08/1986	58-232965-A-58	VIL MABHEKA CH GWESELA KWE KWE	20858	204	ZHOMBE	10
BAFANA	ACCIUM	M	03/05/1968	26-053077-L-26	VIL NYAMBO HOM NJELELE CH NJELELE GOKWE SOUTH	10223	57	GOKWE-MAPFUNGAUTSI	16
BAFANA	ACCIUM	M	03/05/1968	26 9376010-K-26	VIL NYAMBO CH NILLELE GOKWE SOUTH	10223	57	GOKWE MAPFUNGAUTSI	16
BANDA	RUDIA	F	15/04/1978	05 072645-T-05	HSE NO 14 CHAMUNUKA STR SHAMVA GOLD MINE SHAMVA	10968	182	SHAMVA SOUTH	29
BANDA	RUDIA	F	15/04/1978	05 725645-B-05	SHAMVA MINE COMPOUND SHAMVA	10968	182	SHAMVA SOUTH	29
BANDERA	CHIPO	F	17/05/1970	63 807529-F 63	1276 A MUNHONDO ST DZIVARESEKWA 3 HBE	80563	47	DZIVARESEKWA	40
BANDERA	CHIPO	F	17/05/1970	29-061297-L-29	1276A MUNONDO STREET DZIVARESEKWA 3 HARARE	80563	47	DZIVARESEKWA	40
BANDIRIYA	SARAH	F	11/11/1957	32 071706-Z-03	F141 DALNY MINE CHAKARI,SANYATI	40824	21	CHAKARI	3
BANDIRIYA	SARAH	F	11/11/1957	32-727067-D 03	F 141 DALNY MINE CHAKARI,SANYATI	40824	21	CHAKARI	3
BANGA	SHEBBAH	F	26/06/1984	15-170391-E-15	VIL MUCHIRIKUENDA CH MAKOPE MAZOWE	31015	125	MAZOWE CENTRAL	8
BANGA	SHYLEEN	F	26/06/1984	15-170390-D-15	VIL MUCHIRIKUENDA CH MAKOPE MAZOWE	31015	125	MAZOWE CENTRAL	8
BANGAMUSEVE	JEMIAS	M	25/12/1967	22-092528-R-82	VEZA PRIMARY SCHOOL TEACHERS COTTAGE	70683	201	ZAKA WEST	33
BANGAMUSEVE	JEMIAS	M	25/12/1967	22-922528-Q-83	VEZA PRY SCH STAFF QUARTERS ZAKA	70683	201	ZAKA WEST	33
BANGWAYO	ESTHER	F	03/07/1939	13 060150-P-13	VIL MUNYAMANA HOM ZAMCHIYA CH MUSIKAVANHU CHIPINGE	80913	152	MUSIKAVANHU	21
BANGWAYO	ESTHER F	F	03/07/1939	13-1406015-D-13	VIL MUNYAMANA HOM ZAMCHIYA CH MUSIKAVANHU CHIPINGE	80913	152	MUSIKAVANHU	21
CHAMUNORWA	RODWELL	M	05/01/1971	18 040872-S 18	HSE NO C100 CHIVARAIDZE HIPPO VALLEY CHIREDZI	20514	37	CHIREDZI WEST	30
CHAMUNORWA	RODWELL	M	05/01/1971	63 904616-N 63	NO. C 100 CHIVARAIDZE H.V.E CHIREDZI	20514	37	CHIREDZI WEST	30
CHANGI	LLOYD	M	26/04/1979	71 9087268-V-71	VIL MURINGAI HOM MUKWENYA CH CHIPURIRO GURUVE	200271	65	GURUVE NORTH	24
CHANGI	LLYOD	M	26/04/1979	71 372149-N-71	VIL MURINGAYI HOM MUKWENYA CH CHIPURIRO GURUVE	200271	65	GURUVE NORTH	24
CHAPARADZA	TRUST	M	24/07/1987	26 169084-F 26	VIL SIAKACHEMBA CH SICHEMBU GOKWE NORTH	10426	59	GOKWE-KABUYUNI	1
CHAPARADZA	TRYMORE	M	24/07/1987	26 159858-K-26	VIL SIYAKACHEMBACH SIYAMUCHEMBO GOKWE NORTH	10426	59	GOKWE-KABUYUNI	1
CHAPINGIZA	CHIONISO	F	05/09/1972	71 834038-D-71	VIL TIMURI HOM KAZUNGA CH CHIPURIRO GURUVE	150271	65	GURUVE NORTH	19
CHAPINGIZA	CLEOPAS	F	05/09/1972	71 036226-N-71	VIL TIMURI HOM KAZUNGA CH CHIPURIRO GURUVE	150271	65	GURUVE NORTH	19

CHAPUKA	DOREEN	F	13/05/1986	05 105888 C 05	LAGNAHA FARM BINDURA	60105	6	BINDURA NORTH	3
CHAPUKA	DOROTHY	F	13/05/1966	05-090462 K 05	LAGNAHA FARM COMPOUND BINDURA	60105	6	BINDURA NORTH	3
CHARI	COST	M	12/02/1970	45 045242 T 45	MUTUNGAGORE KARUYANA SCHEME MT. DARWIN	10245	143	MOUNT DARWIN WEST	18
CHARI	COST	M	12/02/1970	45 077518 B 45	VIL NYAMANJA CH DOTITO MT DARWIN	100445	143	MOUNT DARWIN WEST	16
CHARI	NOWETI	M	11/03/1984	49 055774 S 49	KAMUSISI VILL HM KADEMBO CH NYAMUKOHO MUDZI	130849	147	MUDZI WEST	5
CHARI	NOWETI	M	11/03/1984	49-557743-L-49	VIL KAMUSISI CH NYAMUKOHO MUDZI	40849	147	MUDZI WEST	6
CHAUKE	NYANISI	F	21/06/1957	02 000366 K 02	VIL MTSHILASHOKWE HDM.MAKHADO CH SITAUZI BEITBRIDGE	10702	7	BEITBRIDGE WEST	7
CHAUKE	NYANISI	F	21/06/1957	02 007905 E 02	VIL CHAPONGWE HDM TSHINONI CH MATIBE BEITBRIDGE	30202	1	BEITBRIDGE EAST	7
CHAUKE	THOMAS	M	01/01/1972	14-133192-P-14	VIL KOTSWE HDM GEZANI CH SENGWE CHIREDZI	60814	36	CHIREDZI SOUTH	14
CHAUKE	THOMAS	M	01/01/1972	14-141176-S-14	VIL MUGIZIVA HDM SAMU CH SENGWE CHIREDZI	50814	36	CHIREDZI SOUTH	15
CHIGUMIRA	DANIEL	M	16/08/1982	45-147072-D-45	FARM 612 CHESA PURCHASE AREA MT DARWIN	40145	142	MOUNT DARWIN SOUTH	13
CHIGUMIRA	DAVID	M	16/08/1982	45-147071-C-45	FARM 612 CHESA PURSHASE AREA MT DARWIN	40145	142	MOUNT DARWIN SOUTH	13
CHIGWANDA	ZVIKOMBERO PETER	F	28/08/1959	63-9095218-P-34	161 MUCHENA SAKUBVA MUTARE	121175	153	MUTARE CENTRAL	4
CHIGWANDA	ZVIKOMBORERO PETER	M	28/08/1959	63 095218 H 34	796 4TH AVE GLENVIEW 1 HARARE	60863	52	GLEN VIEW SOUTH	31
CHIGWIDA	SERINAH	F	28/11/1939	38 006933 H 38	VIL MATIMBA CH NEMATOMBO HURUNGWE	31238	88	HURUNGWE WEST	16
CHIGWIDA	SERINAH	F	28/11/1939	03 8006933 H 38	VIL MATIMBA CH NEMATOMBO HURUNGWE	41238	105	MAGUNJE	11
CHIHURI	ASHTON	M	04/03/1964	63-458170-W 05	984 MUSANA STREET GLEN NORAH HARARE	40763	50	GLEN NORAH	28
CHIHURI	ASHTON	M	04/03/1964	08 488503 H 05	984 MUSANA CRES GLEN NORAH A HARARE	40763	50	GLEN NORAH	28
CHIKANDENGA	STELLAH	F	07/01/1959	45 062691 K 45	VIL MUTEMAMOMBE CH CHISWITI MT DARWIN	80345	141	MOUNT DARWIN NORTH	4
CHIKANDENGA	STELLAH	F	07/01/1959	45 9062691 E 45	VIL CHIMWETA CH CHISWITI MT DARWIN	80345	141	MOUNT DARWIN NORTH	4
CHIKANDIWA	MUNERI	M	15/07/1975	42 177458 M 42	VIL MUTINHIMA CH CHIDUKU MAKONI	110142	111	MAKONI SOUTH	28
CHIKANDIWA	MUNYARADZI	M	15/07/1975	42 165095 Z 07	VIL MUTINHIMA CH CHIDUKU MAKONI	110142	111	MAKONI SOUTH	28
CHITSAYA	JOTHAM	M	27/07/1968	63 588215 Z 43	1825 GLEN VIEW 1 HARARE	60863	52	GLEN VIEW SOUTH	31
CHITSAYA	JOTHAM	M	27/07/1968	63 754145 H 63	KAGUVI MINING GURUVE	40571	66	GURUVE SOUTH	14
CHITSIKO	LAIZAH	F	11/09/1948	71 048541 Z 71	VIL CHINOKOPOTA CH NYAMHUNGA HURUNGWE	11538	88	HURUNGWE WEST	17
CHITSIKO	LAIZAH	F	11/09/1948	71 485541 Z 71	VILL MURARAKWA CH CHISUNGA MBIRE	20346	134	MBIRE	7
DENHERE	FERESIA	F	20/02/1976	80 040872 X 42	1788 UNIT F SEKE CHITUNGWIZA	140363	40	CHITUNGWIZA NORTH	19
DENHERE	FERESIA	F	20/02/1976	80 9040895 B 80	VIL SWEREHOPE HDM RUZANE/MBAVHA CH RUZANE HWEDZA	70180	197	WEDZA SOUTH	11
DLWAH	LAINA	F	13/05/1970	08-558589-N-03	VIL CHIVASA HDM NYAHWA CH CHINGOMA MBERENGWA	41703	132	MBERENGWA SOUTH	27
DLWAH	LAINA	F	13/05/1970	08-553589-D-03	VIL CHIVASA HDM NYAHWA CH CHINGOMA MBERENGWA	41703	132	MBERENGWA SOUTH	27
DLIADHA	TENDAI	F	12/01/1950	22-094522-L 22	VIL NGWARAI CH MAURINNYE MASVINGO	41622	118	MASVINGO CENTRAL	15
DLIADHA	TENDAI	F	12/01/1950	02-2094522-L 22	VIL NGWARAI CH MARINYE MASVINGO	41622	118	MASVINGO CENTRAL	15
DHLIWAYO	CHASARA	M	04/04/1982	13-161617-E 75	VIL MAMBWERE HDM MAMBWERE CH ZIMUNYA MUTARE	60675	155	MUTARE SOUTH	23
DHLIWAYO	CHASARA	M	04/04/1982	75-397950-S 75	VIL MAMBWERE HDM NYAMANA CH ZIMUNYA MUTARE	60675	155	MUTARE SOUTH	23

DHLIWAYO	NHARAUNDA KENNETH	M	01/08/1971	75-9080382-W-75	ZIMUNYA TOWNSHIP MUTARE	11275	155	MUTARE SOUTH	32
DHLIWAYO	NHARAUNDA KENNETH	M	01/08/1971	75-9280382-M-75	ZIMUNYA TOWN SHIP MUTARE	11275	155	MUTARE SOUTH	32
DUBE	BUTHOLEZWE	M	11/09/1980	35-020463-V-35	VIL MPOFU CH MABIKWA	60335	10	BUBE	4
DUBE	BUTHOLEZWE	M	11/09/1980	35-201163-H-35	MPOFU VIL HDM NQUKI CH MABHIKWA BUBI	60335	10	BUBE	4
DUBE	CHARLES	M	27/06/1965	66-904561-Y-12	ZENGEA FARM BEATRICE SEKE	10259	180	SEKE	10
DUBE	CHARLES	M	27/06/1965	66-9045061-R-12	ZENGEA FARM BEATRICE SEKE	10259	180	SEKE	10
DUBE	MABUWA	M	10/03/1972	56-014009-R-56	VIL ISHEMAHALE HDM NDOLWANE CH MPINI BULILIMAMANGW	200556	19	BULILIMA EAST	22
DUBE	MABUWA	F	10/03/1972	56-014008-Q-56	VIL GWAMBE HDM SIKHATHENI CH KANDANA BULILIMA	30556	19	BULILIMA EAST	2
DUBE	SARAH	F	13/04/1974	02-8029411-A-56	VIL MAMBALE HDM MATENGA CH SANGO BULILIMAMANGWE	90356	113	MANGWE	9
DUBE	SARAH	F	13/04/1974	28-029411-A-56	VIL MATSHAMHLOPE HDM MATENGA CH SANGO MANGWE	90356	113	MANGWE	9
GONDO	KIRIO	M	08/10/1968	61-021862-K-61	CHIMANDA SEC SCHOOL QTRS RUSHINGA	10161	178	RUSHINGA	15
GONDO	KIRIO	M	08/10/1968	63-031036-G-61	203 MUGUTA EPWORTH HARARE	10663	49	EPWORTH	1
GONDO	NETSAI JERINA	F	03/04/1975	14-073820-E-04	MUKANGA T/STAFF STAFF QTRS CH MABIKA BIKITA	20504	4	BIKITA SOUTH	2
GONDO	NETSAI JERINAH	F	03/04/1975	04-073820-P-04	VIL MUZUNGU CH MUKANGANWI BIKITA	60804	5	BIKITA WEST	10
GONDO	THOMPSON	M	09/02/1968	71-015427-F-71	VIL GONDO HDM KAZUNGA CH CHIPURIRO GURUVE	160271	65	GURUVE NORTH	19
GONDO	THOMSON	M	09/02/1968	71-014327-K-71	NEGOMO SCHOOL QRTS GURUVE	150271	65	GURUVE NORTH	19
GONO	NAKAYI	F	04/10/1954	58-721970-C-27	1796/18 MBIZO KWEKWE	120358	135	MBIZO	11
GONO	NAKAYI	F	04/10/1954	58-072197-C-22	STD 41 VIL S PAULDALE KWEKWE	10558	39	CHIRUMANZU-ZIBAGWE	2
GWASIRA	FAWANDA RICHARD	M	15/08/1976	42-150839-D-42	VIL GWASIRA HDM NYAMANDE CH MAKONI MAKONI	50442	111	MAKONI SOUTH	18
GWASIRA	FAWANDA RICHARD	M	15/08/1976	42-165667-W-42	VIL GWASIRA HDM NYAMANDE CH MAKONI MAKONI	50442	111	MAKONI SOUTH	18
GWATIDZO	SHADRECK	M	18/03/1971	26-053488-H-26	CHEZAVIL HDM NIELELE CH NIELELE GOKWE	20273	57	GOKWE-MAPFUNGAUTSI	14
GWATIDZO	SHADRECK	M	18/03/1971	26-094759-F-26	VIL CHEZA HDM NIELELE CH NIELELE GOKWE SOUTH	20273	57	GOKWE-MAPFUNGAUTSI	14
GWATIMBA	NYARARISAI	F	12/03/1953	63-636126-B-04	VIL GWEVERA HDM JERI CH JERI GOKWE SOUTH	20623	56	GOKWE-KANA	27
GWATIMBA	NYARARISAI	F	12/03/1953	63-6336126-B-04	VILL KWEVERA CH JERI GOKWE SOUTH	20623	56	GOKWE-KANA	27
GWATIRINGA	KUDAKWASHE	M	19/07/1977	77-156648-W-77	GWATIRINGA VIL CH HAMA CHIRUMANZU	30477	38	CHIRUMANZU	8
GWATIRINGA	KUDAKWASHE	M	19/07/1977	77-010648-X-77	VIL GWATIRINGA CH HAMA CHIRUMANZU	30477	38	CHIRUMANZU	8
HEHLELANI	ESTHER	F	15/05/1958	83-056457-G-83	HSE NO. 175 SECT 8 VL HIPPO VALLEY ESTATES CHIREDZI	30514	34	CHIREDZI EAST	31
HEHLELANI	ESTHER	F	15/05/1958	14-905645 7-M-83	VIL ZAVENI HDM SAMU CH SENGWE CHIREDZI	70814	34	CHIREDZI EAST	6
HIYA	VIL MARIMBA	M	29/12/1949	02-5005702-K-25	HIYA VIL HDM SAWADA CH CHIKWAKA GOROMONZI	10125	67	GOROMONZI NORTH	16
HIYA	VIL MARIMBA	M	29/12/1949	25-005702-K-25	HIYA VIL HDM SAWADA CH CHIKWAKA	10125	67	GOROMONZI NORTH	16
HOVE	RUDORWASHE	M	25/12/1960	03-021638-N-03	VIL FELANI HDM MUGOBO CH MAZIOFA MBERENGWA	11103	131	MBERENGWA NORTH	17
HOVE	RUDORWASHE ARTWELL	M	25/12/1960	08-021638-W-03	VIL FELANI HM MUGOBO CH MAZIOLA MBERENGWA	11103	131	MBERENGWA NORTH	17
HOVE	SUNUNGURAI	F	22/11/1959	67-045057-L-03	VL CHIWUNGANI HDM MAKADO CH NLGOVE MBERENGWA	41303	130	MBERENGWA EAST	5
HOVE	SUNUNGURAI	F	22/11/1959	06-7045057-L-03	VILL MAGWANGU HDM PIKIRI CH NLGOVE MBERENGWA	21303	130	MBERENGWA EAST	5

JAKAZI	SIONERI	F	12/03/1973	26 075965-P 26	VIL MATIKITI HDM MAKORE CH CHIREYA GOKWE NORTH	200226	55	GOKWE NEMBUDZIYA	12
JAKAZI	SIONERI	F	12/09/1973	26-025965-R-26	VIL MATIKITI HDM MAKORE CH CHIREYA GOKWE NORTH	200226	55	GOKWE NEMBUDZIYA	12
JAMBAWO	ISHMUEL	M	25/03/1986	43-2010408-E-43	VIL MHIZHA CH CHIHOTA MARONDERA	20143	117	MARONDERA WEST	15
JAMBAWO	ISHMUEL	M	25/03/1985	43 143437-P 43	KOORO VIL CH CHIHOTA MARONDERA	20143	117	MARONDERA WEST	15
JAMBO	ISAIAH TAKAWIRA	M	11/08/1962	63-541577-F-63	47 SONDAYI STREET MBARE HARARE	101963	129	MBARE	12
JAMBO	ISIAH TAKAWIRA	M	11/08/1962	63 027096-M-63	47 SONDAYI STREET MBARE HARARE	101963	129	MBARE	12
JAMBO	MODESTER	F	10/05/1981	49-079266 C-49	KANOFEMA VIL CH CHIKWIZO MUDZI	10249	146	MUDZI SOUTH	15
JAMBO	MODESTER	F	10/05/1981	49-065561-F-49	KANOFEMA VIL CH CHIKWIZO MUDZI	10249	146	MUDZI SOUTH	15
JAMBWA	JAMES	M	04/03/1964	63 451836-L 47	VIL GOSO HDM NHEWEYEMBWA CH MANGWENDE MUREHWA	300147	149	MUREHWA NORTH	5
JAMBWA	JOHN TAPIWA	M	04/03/1964	47-045349-Y-47	VIL CHAMUNORWA HDM NHEWEYEMBWA CH MANGWENDE	300147	149	MUREHWA NORTH	5
JANA	LOSMORE	F	27/01/1961	42 062522-G-42	12480 UNIT N SEKE CHITUNGWIZA	390363	41	CHITUNGWIZA SOUTH	23
JANA	LOSMORE	M	27/01/1961	42 119127-J 42	VIL ZAMBE HDM BVEKERWA CH MAKONI MAKONI	130142	112	MAKONI WEST	15
JANI	TARWIREYI	M	05/04/1979	48 1000100-V-48	VIL DOVI CH CHIMOYO MUTOKO	60248	160	MUTOKO EAST	19
JANI	TARWIREYI	M	05/04/1979	48 100100-R-48	DOVI VIL CH CHIMOYO MUTOKO	60248	160	MUTOKO EAST	19
JASI	JAIRO	M	11/07/1986	85 032981-C-85	VL KAPONDORO HM DADVI CH NYAUNA UMP	110385	114	MARAMBA PFUNGWE	7
JASI	JAIROS	M	11/07/1986	85 2000187-J 85	KAPONDORO VIL HDM DAVID CHIEF NYAUNA UMP	110385	114	MARAMBA PFUNGWE	7
JELE	JOHNSON	M	05/11/1968	08 530702-B-08	232 NEW LUVEVE BULAWAYO	41508	103	LUVEVE	15
JELE	JOHNSON	M	05/11/1968	08-577093-B-08	716 LUVEVE BULAWAYO	41508	103	LUVEVE	15
JELE	MATHEWS	M	23/12/1973	24-110920-W 24	71700 LOBENGULA WEST BYO	41408	100	LOBENGULA	14
JELE	MATHEWS	M	23/12/1973	08-617223-W-35	71559 LOBENGULA WEST,BULAWAYO	41408	100	LOBENGULA	14
JENAMI	PANASHE PETROS	M	03/03/1989	37 091563-Q-37	KADZIRO PRIMARYSTAFF QUARTERS KARIBA	10637	96	KARIBA	11
JENAMI	PAUL MABASA	M	03/03/1985	37 091483-D-37	KADZIRO PRIMARY SCHOOL STAFF QUARTERS KARIBA	10637	96	KARIBA	11
JERAHUNI	CHIONESO	F	01/04/1969	63 764750-K-80	RWODZI VILL HDM CHANETSA CH NEMATOMBO	51238	105	MAGUNJE	11
JERAHUNI	CHIONISO	F	01/04/1969	63 9776863-H 80	49 T DANGAMVURA MUTARE	30975	46	DANGAMVURA-CHIKANGA	6
JIJI	HARIPUTIRWI INNOCENT	M	02/02/1957	SB 001153-F-26	1 RUSUNUNGUKO RUTENDO REDCLIFF KWEKWE	80458	177	REDCLIFF	6
JIJI	HARIPUTIRWI INNOCENT	M	02/02/1957	05 8001153-F 26	1 RUSUNUNGO RD RUTENDO KWEKWE	80458	177	REDCLIFF	6
JIMU	CHESA	F	24/09/1971	15 184840-K-15	VIL CHINGAWO CH CHISWITI MOUNT DARWIN	30345	141	MOUNT DARWIN NORTH	2
JIMU	CHESA	F	24/09/1971	15 184840-D-15	VIL CHINGAWO CH CHISWITI MT DARWIN	30345	141	MOUNT DARWIN NORTH	2
JIMU	JASPER	M	08/08/1984	24-158023-V-24	VILLAGE 22 STAND NUMBER 4 MUZVEZVE ONE SANYATI	21324	21	CHAKARI	4
JIMU	JASPER	M	08/08/1984	24-158022-T-24	STD 4 VIL 22 MUZVEZVE 1 SANYATI	11324	21	CHAKARI	5
JOCHODZI	ELINAH	F	04/04/1936	03 050826-P 03	VIL MAMWEZHE HDM PETILE CH MUDAVANHU MBERENGWA	30903	133	MBERENGWA WEST	14
JOCHODZI	ELINAH	F	04/04/1936	03 062199-B-03	VIL MAMWEZHE HDM ZVERENJE CH MUDAVANHU MBERENGWA	30903	133	MBERENGWA WEST	14
JOE	CHIGODO	M	10/01/1949	63-460878-P 63	5661 OVERSPILL EPWORTH	130663	49	EPWORTH	6
JOE	CHIGODO	M	10/01/1949	63 940078-B-63	2073 CHINAMANO EXT EPWORTH HARARE	70663	49	EPWORTH	5

JOHN	MARGARET	F	06/11/1958	63-625909-W-45	VIL KATENAIRE CH DOTITO MT DARWIN	190445	140	MOUNT DARWIN EAST	38
JOHN	MARGARET	F	06/11/1958	06 3625909 W-45	VIL KATENAIRE CH DOTITO MT DARWIN	190445	140	MOUNT DARWIN EAST	38
JOHN	PRISCA DADIRAYI	F	09/11/1986	63-1278059-C-63	BLOCK 11 5 10&11 MATAPI FLATS MBARE HARARE	271963	129	MBARE	3
JOHN	PRISCILLA SEKESAI	F	09/11/1986	63-1277753 K-63	BLOCK 7 ROOM 596 MBARE FLATS HARARE	201963	129	MBARE	3
JOJO	FELISTAS	F	11/07/1985	86-038643-N 86	950 KUWADZANA, BANKET, ZVIMBA	40186	207	ZVIMBA SOUTH	23
JOJO	FELISTAS	F	11/07/1985	86-038643-5-86	950 KUWADZANA BANKET	40186	207	ZVIMBA SOUTH	23
JOKONYA	CLARA	F	04/10/1990	45 185618 9 05	VILLAGE YEMURAI DARWIN SCHEME MOUNT DARWIN	80245	147	MOUNT DARWIN SOUTH	40
JOKONYA	CLARE	F	04/10/1990	45-185621-E-45	VIL YEMURAI DARWIN SCHEME MT DARWIN	80245	147	MOUNT DARWIN SOUTH	40
JONASI	CHRISPEN	M	16/02/1985	61-048329-D-61	VILL MACHINGA CH RUSAMBO RUSHINGA	50461	140	MOUNT DARWIN EAST	8
JONASI	CHRISTOPHER	M	16/02/1985	61-048330 F 61	VILL MACHINGA CH RUSAMBO RUSHINGA	50461	140	MOUNT DARWIN EAST	8
JONGOMADZI	JOICE	F	11/11/1979	47-063975 T-47	VIL MAPISA HDM CHIUNZE CHF CHITSUNGO,UMP	10285	114	MARAMBA PFUNGWE	2
JONGOMADZI	JOICE	F	11/11/1979	47-065075 S-47	MAPISA VIL CHIUNZE HDM CH CHITSUNGO U. M. P	10285	114	MARAMBA PFUNGWE	2
JOROMIA	MUCHINERIPI	M	08/03/1962	68-312972 F-07	VIL MABVUREGUDO HDM MASVUREGUDO CH NYASHANU BUHE	60807	12	BUHERA CENTRAL	18
JOROMIA	MUCHINERIPI	M	08/03/1962	68 312972 X-07	VIL MABVUREGUDO HDM MABVUREGUDO CH NYASHANU BUHE	60807	12	BUHERA CENTRAL	18
JOSIFATI	LEAH	F	04/05/1983	47-145485-R-47	WATERLOO FARM MACHEKE MUREHWA	60247	150	MUREHWA SOUTH	24
JOSIFATI	LEAH	F	04/05/1983	47-146906-L-47	WATERLOO FARM MACHEKE MUREHWA	60247	150	MUREHWA SOUTH	24

ANNEXURE C

IN THE CONSTITUTIONAL COURT
HELD AT HARARE

In the matter between:

SUPPORTING AFFIDAVIT OF TONGAI MATUTU

I, the undersigned TONGAI MATUTU duly states as follows:

1.

That am an outgoing member of Parliament for Masvingo Urban and contested the Parliamentary seat on an MDC-T ticket during the harmonized elections held on the 31st July 2013.

2.

According to the results released by Zimbabwe Electoral Commission (ZEC), I polled 10 424 votes against a ZANU (PF) candidate's 10 998.

3.

As a candidate, I was heavily involved in the events leading to the harmonized elections and in particular monitored with keen interest the special votes that were dispatched to Masvingo Urban in particular.

4.

Prior to the voting day(on 31/07/13) Masvingo Province received 4184 special votes but only 1 810 were accompanied by the relevant registers in terms of the law. It means therefore, 2 374 special votes were received by the Zimbabwe Electoral Commission without the relevant registers. Issues were raised against the anomaly of non registers but an assurance was given by ZEC officials that such registers would be availed on or before the voting commenced, but this did not materialize.

5.

In Masvingo Urban, a total of 991 envelopes containing ballot papers were received but only 342 were accompanied by registers. The remaining 648 could not be accounted for but an assurance was given that prior to the voting such registers would be availed. So, at the time of commencement of voting the registers could not be availed and therefore no deletion from the voters roll could be carried out in the absence of the registers.

6.

The special votes were distributed in the constituency as follows:

WARD	ENVELOPES	REGISTERS
1	166	41
2	26	0
3	24	0
4	22	0
5	14	1
6	14	1
7	53	21
8	8	2
9	150	23
10	514	253
TOTAL	991	342

7.

Out of the above distribution it was discovered that even some of the purported voters' were not even in the voters, for example

WARD	ENVELOPES	REGISTER	NON REGISTERED VOTERS
1	166	35	6
7	53	21	4
10	514	253	15
Total	733	309	25

8.

At all material times, a Mr Ncube of the Zimbabwe Electoral Commission based in Masvingo was assuring me that the registers would be availed in time, latest before the counting commences. However, up to the close of the polling station in my constituency no such registers arrived and the hope was that the votes would be considered in terms of the law.

9.

To the contrary Zimbabwe Electoral Commission officials, namely Zex Pudurai, the Provincial Head and his Deputy one Ncube directed all Presiding officers to include the special votes notwithstanding the fact that no registers had been availed to reconcile the special votes cast, and in any event some of the votes accompanied by registers were not in the voters' roll.

10.

When the polling agents resisted the move as per the party's instructions, the Zimbabwe Electoral Commission through its constituency Elections Officer, one Mrs Watema instructed that such agents should be arrested. To my surprise, riot police were

summoned to ward 6 command centre where the elected councilor, Herbert Pfidze was threatened with arrest.

11.

As a result of the conduct of ZEC officials and the police, the special votes were included in the final count of the total votes notwithstanding the following:

i) That no deletion was done to the names of the people that had exercised their right to vote using the special vote prior to the commencement of the voting exercise.

ii) About 673 envelopes that were distributed in the constituency were not accompanied by registers and therefore, that was not clear as to whether such persons were entitled top vote in my constituency in the absence of the registers.

iii) About 25 people whose votes were cumulatively allowed to be counted under the special votes were not in the voters' roll and this defeats, the reason why the election is ward based.

12.

As a result of the manner in which the Zimbabwe Electoral Commission conducted itself, there was a real possibility of double voting by people who allegedly voted through the special vote, especially those who had no registers accompanying the envelopes. To conceal its shortcomings ZEC officials did not place the special votes in a separate package before counting in certain wards but instead mixed same with the votes cast on the polling day.

13.

I have a reasonable ground to believe that the special votes were used to target certain constituencies since they could not be traced to any applicant (voter) within my constituency and this highly prejudiced the Presidential outcome in the following manner:

i) In Masvingo Province 2374 special votes had no registers and there is a high likelihood of double voting at the expense of another candidate.

ii) The district special voting officer failed in his duties by not comparing the number of envelopes in the special ballot box with the number of persons who were authorized to cast a special vote in the constituencies, districts and Province.

14.

What is also interesting to note is that ZANU (PF) "won" resoundingly in the special votes in my constituency compared to votes cast on the date of election, for example:

Ward	Presidential	House of Assembly
9	R.G Mugabe 119	D. Shumba 121
	R.M Tsvangirai 30	T. Matutu 25
8	R.G Mugabe 6	D. Shumba 6
	R.M Tsvangirai 2	T. Matutu 2
10	R. G Mugabe 438	D. Shumba 431
	R.M Tsvangirai 70	T. Matutu 68

It is apparent that this whole process of the special vote was a manipulation by forces outside the voters' because, in ward 9 ZANU PF, only won the special votes and lost in all the four polling stations.

15.

I strongly believe that the special vote facility was abused by ZEC and should not be allowed to stand in circumstances where either the envelopes were not accompanied by a register the votes included people not on the voters' roll and no deletion was done to the alleged votes prior to the commencement of the vote to avoid double voting.

16.

I state the above fully aware that same is true.

SWORN TO AT MASVINGO THIS..... DAY OF AUGUST 2013.

.....
TONGAI MATUTU

BEFORE ME:

.....
COMMISSIONER OF OATHS

Form V 25A

ELECTORAL ACT [*CHAPTER 2:13*]
(*Section 65*)

COLLATION OF POLLING STATION RETURNS AT WARD COLLATION CENTRE

Section 37C(4) (d) of the Electoral Act [*Chapter 2:13*]

Name of ward	
Ward number	
Name of constituency	
Name of Province	

Total votes received by candidates in Local Authority election

Name of polling station	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Votes rejected
	1.	2.	3.	4.	5.	6.	7.	
1.								
2								
3								
4								
5								
6								
7								
Add special and postal votes								
Special votes for ward								
Postal votes for ward received								
Total votes received								

Annexure D2 61

Total votes received by candidates in Presidential election

	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Votes rejected
	1.	2.	3.	4.	5.	
Name of polling station						
1.						
2						
3						
4						
5						
Add special and postal votes						
Special votes for ward						
Postal votes for ward received						
Total votes received						

Total votes received by candidates in National Assembly election

	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Votes rejected
	1.	2.	3.	4.	5.	
Name of polling station						
1.						
2						
3						
4						
5						
Add special and postal votes						
Special votes for ward						
Postal votes for ward received						
Total votes received						

Declaration by Ward Elections Officer

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Annexure D3

I hereby certify that the above is a correct statement of the collated results at this ward collation centre.

Full names of Ward Elections Officer	
Signature of Ward Elections Officer	
Date	
Name of witness	
Signature of witness	

Declaration by candidates/ election agents

I hereby confirm that this return is a correct statement of the collated results at this ward collation centre.

Declaration by candidates/ election agents

I hereby declare that this return is a correct statement of all votes cast at the above mentioned polling station.

	Name	Name of political party	Independent candidate	Designation	Date	Signature
1.						
2.						
3.						
4.						
5.						

Distribution of ward collation return:

The ward collation return is to be completed and distributed as follows:

1. Display copy outside ward collation centre and a copy given to the candidate or his or her election agent.
2. Provide copy to each election agent and observer present at polling station.
3. Seal copy in the ballot box.
4. Send copy to the Presidential Constituency Centre
5. Send copy to the National Assembly Constituency Centre.
6. Send copy to the Provincial Command Centre.
7. Send copy to Chief Elections Officer at the National Command Centre

[Form substituted by s.i 87 of 2013]

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ANNEXURE D4

COLLATION OF POLLING STATION RETURNS AT WARD COLLATION CENTRE
Section 37C (4) (a) of the Electoral Act [*Chapter 2:13*]

Type of election *(Tick applicable)*

Presidential election	✓
National Assembly election	
Local Authority election	

Details of Ward Collation Centre

Local Authority : HARARE MUNICIPALITY

Ward Number : 8

Name of Constituency : HARARE EAST

Name of District : HARARE

Name of Province : HARARE

Receipt and verification of postal vote envelopes *(to be opened and deposited into ordinary ballot box at any one of ordinary polling stations without ascertaining how the voter has voted)*

Total number of postal vote envelopes received	Number of postal vote envelopes accepted after verification process	Number of postal vote envelopes rejected after verification process
1	1	0

Receipt and verification of special vote envelopes *(to be opened and deposited into ordinary ballot box at any one of ordinary polling stations without ascertaining how the voter has voted)*

Total number of special vote envelopes received	Number of special vote envelopes accepted after verification process	Number of special vote envelopes rejected after verification process
77	76	1

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D5

Name of polling station	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Name of candidate	Votes rejecte
	DABENGWA DUMISO ZAPU	MUSABE ROBERT GABRIEL ZANU PF	MUKWAZHE MUNODEI KISINOTI ZDP	NCUBE WELSHMAN MDC	TSVANGIRAI MORGAN MDC T							
1 HIGHLANDS A	5	172	0	7	254							5
2 HIGHLANDS B	0	144	0	4	221							1
3 KENSAM	0	272	1	8	160							
4 ORIEL BOYS	0	219	0	11	339							
5 ORIEL GIRLS	0	86	2	3	141							
6 ST CATHERINE	0	127	0	4	123							
7 GLENROY SHOPPING CENTRE	1	228	0	5	292							
8 GLISTEN SERVICE STN	1	74	0	8	196							
9 GLEN SPRINGS ANNEXE BANK SOUTH MALL CENTRE	3	141	0	10	186							
10												
11												
12												
13												
14												
15												
16												
17												
18												
19												
20												
21												
22												
23												
24												
25												
26												
27												
28												
29												
30												
31												
32												
33												
34												
Total votes received	5	1457	3	60	1912							20

IN THE CONSTITUTIONAL COURT OF ZIMBABWE CASE NO CCZ /13
HELD AT HARARE

In the matter between:

MORGAN RICHARD TSVANGIRAI	APPLICANT
And	
ROBERT GABRIEL MUGABE	1ST RESPONDENT
And	
THE ZIMBABWE ELECTORAL COMMISSION (ZEC)	2ND RESPONDENT
And	
THE CHIEF ELECTIONS OFFICER	3RD RESPONDENT
And	
THE CHAIRPERSON OF ZIMBABWE ELECTORAL COMMISSION	4TH RESPONDENT

DRAFT ORDER

At Harare on this day of 2013

BEFORE the Hon

for Applicant

for Respondent

WHEREUPON, after hearing the evidence and Counsel and reading documents,

1. It is declared that the election of a President in which special voting was held on 14 to 16 July 2013 and ordinary voting held on 31 July 2013 be and is hereby declared to have been invalid and that election is set aside, in accordance with section 93 of the Constitution of Zimbabwe; and

2. Accordingly the declaration on 3 August 2013 by Fourth Respondent that the First Respondent had been duly elected as President of Zimbabwe is also set aside; and

3. A fresh election shall be held within 60 days hereof; and

4. The Applicant's costs herein shall be borne by the Respondents, jointly and severally, one paying the others to be absolved

BY THE COURT

JUDGE / REGISTRAR